PUBLIC SERVICE COMMISSION

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CASE NO.: 19-G-0309 Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid for Gas Services.

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Public Statement Hearing
Brooklyn Borough Hall
209 Joralemon Street
Brooklyn, New York

July 31, 2019
7:00 p.m.

PRESIDING:

JAMES A. COSTELLO

Administrative Law Judge

SPEAKERS: PAGE:

Chaim Deutsch 6
Council Member, District 48

Robert Carroll 14
Assembly Member, 44th District

Jo Anne Simon 18
Assembly Member, 52nd District

Laurie Wheelock 21
Public Utility Law Project

Joseph Guarinello 27
HeartShare

Matt Gove 29
Surfrider Foundation

Reggie Nance 32
AARP New York

Stephanie Goulet 35
Resident

Ruth Berkovits 36
Resident

Angelina Garneva 38
Sane Energy Project

Jackie Weisberg 45
350Brooklyn.com

Justin Pascone 50
New York Building Congress

Keith Wachtel 53
Real Estate Developer

Israel Eidelman 56
Restaurant Owner

Ben Solotaire 58

SPEAKERS (con't) PAGE:

Elizabeth Adams 60
Representing Council Member Steve Levin

Proceedings

ALJ COSTELLO: I call case 19-G-0309 Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Brooklyn Union Gas Company, doing business as National Grid New York for Gas Service.

My name is James Costello, I'm an Administrative Law Judge at the Department of Public Service, I've been assigned to this matter. With me here today is Commissioner Diane Burman. Commissioner Burman is one of the Public Service Commissioners who will ultimately be deciding what the company's rates and conditions of service should be. Commissioner Burman.

COMM,tNs BURMAN: Hello, my name is Diane Burman, I am one of the Commissioners. I've been on the Commission since 2013. I am a life long New Yorker. I actually live up state now but I'm originally from Long Island and New York City.

My job here is to be a listener, and to take back the information that I get here to my fellow Commissioners. It's really important for me coming to the public statement hearings,

Proceedings

to be open to listening to all your comments, and feel very comfortable sharing your thoughts and we will take them back and put them in the record.

So, thank you for having me here today and I look forward to hearing from you.

ALJ COSTELLO: Thank you, Commissioner Burman.

So, we're here tonight so that you can make comments, and what we will do is summarize and report the comments for the other Commissioners on the Public Service Commission.

This hearing, the Public Statement Hearing was scheduled pursuant to a notice that was issued on July 10, 2019, and it was also publicized in a press release issued by the Public Service Commission.

For purposes of this Public Statement Hearing I would ask that if you wish to speak and haven't done so already, please fill out a card. We'll use those cards to call people up to the podium to my left where I will ask you to speak, loudly, and clearly and slowly into the microphone, so that the court reporter who

Proceedings

will be transcribing the statements can do so properly.

Once the statements are transcribed, we will get those transcripts up on the Department of Public Service's website, and that usually takes around a week to two weeks after we get your statements. I ask if you haven't done so already, please silence any electronic devices that you have and if anyone has any questions about the procedure or this public statement hearing I can answer them at this point.

(No response.)

If there are no questions I will start with the first speaker, and I apologize, I do my best with the names, if I mispronounce your name, let me know, Chaim Deutsch.

COUNCILMAN DEUTSCH: Thank you. I represent, Councilman Chaim Deutsch.

I just want to begin by saying that we are a borough of 2.6 million New Yorkers, Brooklynites, here in Brooklyn. And when you look around the room here, you have maybe, not counting National Grid employees and representatives, we have maybe thirty, forty

Proceedings

people here, and that's a shame.

And whoever is here I commend you for being here and for being a voice for your communities, and I see people here from the senior community, and I see people here from my district.

And what's extremely important is that there was no conversations in regards to the Williams Pipeline. So people who are politically involved, people who are invested, that are being effected by not having any gas that's being opened now, they know about it, most of them, not all, but there's no conversation about this.

So I decided this week to have a meeting with National Grid and to send out the Deutsch Report, and the reason why it's called Deutsch Report is because my name is Deutsch, and this goes out to the thousands of emails across Brooklyn, and just to educate people and let them know that we are in a crisis.

When we are talking about a moratorium of having gas open for property owners, we are speaking about NYCHA Developments whose boilers

Proceedings

are failing each and every winter, where they cannot switch over from oil to gas.

And this winter we're going to have the same issues, hopefully not, but I'm sure with the way NYCHA runs here in New York City, and the oversight that we have here in New York City, we're going to be failing Brooklynites and New Yorkers again. So these developments cannot be switched over from oil to gas because there is a moratorium with National Grid.

Secondly, people, developers that are building affordable housing throughout the city, so when it comes to the gas turnons and everything is in place for gas hookups, they cannot be turned on.

So, we are literally taking away affordable housing from people, and here in New York City we have a crisis when it comes to homelessness, we have about 63,000 people who are in homeless shelters, and tens of thousands more who are living on the streets, and you can see for those who came here by subway.

Then they're speaking about vacant storefronts, small businesses -- many small

Proceedings

businesses don't know that they cannot get gas until it's too late. For example, you have a storefront that becomes vacant, a new store moves in, so a supermarket let's say closes up, and a restaurant or pizza parlor comes in and they need gas. They do all the construction, construction is complete up until the gas hookup, but when they call up the National Grid, I am sorry, there is a moratorium on new gas service.

People are going out of business. Developers who are building affordable housing have to stop all construction, layoff workers, stop buying supplies. This is a trickle, this is an effect that happens from a developer, a business owner, all the way down to the employees. All the way down to the contractors. All the way down to the suppliers. And we here in New York City are in a crisis.

I am a New York City Council Member. I don't have oversight on the Public Service Commission. I don't have oversight on National Grid, and I don't have oversight on the State.

Proceedings

What I do know I have oversight on is my constituents, and that is why I'm here today, on behalf of my 170,000 residents in southern Brooklyn.

Firstly, I would like to commend Assembly Member Robert Carroll, who took the time to be here today. I would like to commend a staff member from my colleague, Councilman Steve Levin, who took the time to be here today.

Where are our elected officials who are supposed to be representing us in the State? I have State elected officials who represent my constituents in Southern Brooklyn; where are they? Where are they? That is a shame. We need to hold our elected officials accountable.

I was here not too long ago when they had the issue on property tax increases. I was standing here in the same room testifying with only a handful of people -- in Brooklyn -- 2.6 million Brooklynites.

We need to educate our friends, our colleagues, and we need to be responsible to let people know that they need to come out and raise their voices and make their communities'

Proceedings

voice heard loud and clear by being here and by testifying.

And this is not, this is not the end, this is just the beginning. There will be other public hearings, I believe there will be another one in Staten Island which I'm planning to go. Brooklyn, New York, the five boroughs, if it effects one community, it effects all communities. So I am planning to go to the Staten Island Public Hearing as well.

I just want to say that it's important as elected officials to educate the residents of New York City. So not only have I sent out a presser a few days ago, but I'm also going to be on a radio show Thursday night, ten o'clock on 620 AM, with my colleague in government, Assembly Member Bill Colton, who is going to be discussing this crisis that we have.

We need to hold our State Assembly Members who have oversight on New York State (inaudible), who have oversight on the Public Service Commission, who have oversight on National Grid, to figure out what needs to be done.

Proceedings

And, yes, we need to protect our environment. We need to understand and be educated, what are the better choices? Is it the Williams' pipeline? Is it something else? We need to be educated. We need to have those elected officials to have conversations about this because we are in the middle of this moratorium, where people are going to be losing money and losing their livelihood and being out on the street, and that is totally unacceptable.

And finally I just want to say that in regards to the fare hike, the hike in our utilities, I just went through myself, I went through my budget this morning to see what my budget is, what I could afford, what I can't afford, and this rate increase is just something else I have to keep in mind.

You know, New Yorkers, we work sometimes one, two, three different jobs. Senior citizens, which comprises most of my district, they're on fixed incomes. And we need to hold our utility companies accountable when it comes to rate increases, and that is extremely

Proceedings

important.

So, I want to object to the rate increase. To all the things that you mentioned that you are doing for the public, I don't see it happening. I see that people are going to be going out of business. I see that affordable housing will not be built. And how can we have a hearing today on a rate increase when we can't even get gas?

I just had a constituent here who suffered during Hurricane Sandy, and he's been out for seven years, and he came down today, he took the time to come down here today, and he's homeless, he cannot live in his home, and he cannot get his gas turned on. And that is unacceptable.

And, on a good note, I want to thank, and I have to be very honest and sincere, that the partnership that I have in my district with National Grid has always been very responsive on their part. And with all the negative that I have against the utility company, and I just want to end off by thanking the two individuals, Eileen, who is here today, and

Proceedings

Christina, who is sitting in the back.

When it comes to issues, especially during winter, as we all know, when someone has a gas leak and their gas gets turned off, you can be off for three, four months, because you have to go through all the proper channels and everything. And working with Department of Buildings and working with National Grid, we were able to make sure that eighty-five, ninety year olds in my district were able to get turned on in a timely fashion, so I want to thank them for that.

That is the positive note but that should not outweigh the negative about what I just talked about the utility company.

So, I want to thank you for coming out, each and every one of you, for being here tonight and taking the time. I know you have better things to do, you have children and grandchildren at home who need to eat dinner. I'm not going to mention homework because there's no school. And I have five children and two grandchildren who are home in my house right now, and I made sure to come here to speak on behalf

Proceedings

of my district and Brooklynites and to make sure that our residents and those who are less fortunate, that their voices are heard today. So thank you very much.

ALJ COSTELLO: Thank you.

(Applause.)

ALJ COSTELLO: Robert Carroll.

ASSEMBLYMAN CARROLL: Good evening Commissioner Burman, good evening Administrative Law Judge Costello.

First, I would like to echo Council Member Deutsch's remarks, I want to thank all of the Brooklynites and advocates who came out here tonight, all of the elected officials, my colleague, Assembly Woman Jo Anne Simon, as well as Ben Solotaire, a representative for Council Member Steve Levin's office and Laurie Wheelock from the Public Utility Law Project.

My name is Robert Carroll, and I am the Assembly Member for the 44th Assembly District for Brooklyn, New York.

National Grid is seeking an increase of $196 million. This is 13.9% increase in natural gas delivery rates. This is on top of

after an already rate increase of 2016 that was almost ten percent.

National Grid's rates are already one of the highest in New York and in the nation. Many of the people I represent, and many Brooklynites across our City are struggling to pay their utility bills, and if the Public Service Commission approves the company's request, my constituents will have an even greater difficulty in paying their bills.

Because of that, I urge the Commission to reject the company's request for a rate increase.

In addition to what I see as an unnecessary rate increase, I have serious concerns around National Grid's plan to recover superfund costs on the backs of ratepayers in Brooklyn. National Grid Shareholders have been designated as the primary responsible parties in both superfund sites in Brooklyn, that is the Newtown Creek and Gowanus Canal.

The Commission should make sure that a fair and responsible decision be made regarding who pays for the cleanup costs. Not simply

Proceedings

place the entire burden on ratepayers, which is currently happening.

Furthermore, my district office has received many complaints, and my office and other colleagues in the New York State Assembly, have written a letter regarding the fact that new gas connections are not happening in Brooklyn.

There has been absolutely no case made for this moratorium, which constituents have related to me on numerous occasion and heard this evening from people around Brooklyn. This was not given with notice, and this is triggering substantial and unwarranted costs, and will potentially have negative impacts on the current state of the electrical grid, especially given recent blackouts this summer.

Because of all of this, and my work with the Public Utility Law Project, as well as my colleagues in the New York State Assembly, I sent a letter to the Public Service Commission last week calling for a separate investigation on this moratorium and urged the Commission to reject any rate increase for Brooklynites.

Proceedings

There was a rate increase just three years ago, we cannot afford another rate increase. Brooklynites already pay some of the highest natural gas rates in the nation, when will it stop? National Grid currently has a policy that they will decrease service and increase costs. It is completely unfair. It is unnecessary. I urge you to reject this increase and I urge you to investigate this moratorium.

Thank you both so much for your time. I thank all of the Brooklynites here tonight for the work that they are doing. Together we can stop this. I thank you. Have a wonderful rest of the evening.

ALJ COSTELLO: Thank you.

(Applause.)

ALJ COSTELLO: Jo Anne Simon?

ASSEMBLY WOMAN SIMON: Thank you Commissioner Burman and Administrative Law Judge Costello. I never know whether to say, Administrative Law Judge, or, ALJ, but, so, thank you for being here, I know you will be hearing from many people this evening.

Proceedings

My name is Jo Anne Simon and I represent the 52nd Assembly District, and it is my district in which the Gowanus Canal sits.

So, while I completely endorse the comments that have been previously made by Council Member Deutsch and Assembly Member Carroll with regard to all of the issues, I particularly want to address the concern I have with regard to the people who are most effected by the Gowanus Canal and the costs of the cleanup, which the last rate increase, put a hundred percent of that rate increase will be borne by the ratepayers for the cleanup of the Gowanus Canal.

Those costs are going to go up. Part of this rate increase will be put on the ratepayers, and really and truly it is a cost that is properly borne by shareholders. It should not be the ratepayers that are paying for the cleanup of the Gowanus Canal. And my constituents particular are the people who have been the most damaged by it, being near the Gowanus Canal. They're living with the Gowanus Canal, they will be living with disruption of

Proceedings

the cleanup of the Gowanus Canal, and they shouldn't be paying for it. This is, again, a cost that is properly borne by the company. And, by the company, I mean the company shareholders.

I believe that this rate increase should be rejected and I also agree that we need to do an investigation of this moratorium.

We have gotten many, many calls in my district office with regard to people who cannot get gas hooked up. People who were doing a renovation, who had to turn off their gas while they did the renovation and then they can't get it turned back on. And of course they had absolutely no notice of that, there was absolutely no information given to them at the time that their gas was shutoff for the purposes of getting renovation done, that they will not be able to have gas in the future.

I strongly suspect that this moratorium is made up. I don't know how, if they, if the rate increase is not given, or the pipeline is not built, that some how or another it will magically result in a shortage this fall.

Proceedings

There, if the permission is given for the pipeline, which I would prefer it not be given, but if it is, they're not going to be using that, that is not going to effect the amount of gas that is available for customers any time soon.

So, I have a lot of questions about this whole moratorium issue. About the need for this additional pipeline and I think that we should have a full and transparent investigation of that.

And, so I leave you with that. Please do a full investigation and don't approve this rate increase. Thank you very much.

ALJ COSTELLO: Thank you.

(Applause.)

ALJ COSTELLO: Laurie Wheelock.

MS. WHEELOCK: Good evening, Commissioner Burman, Administrative Law Judge Costello, to all the advocates, customers, the company, my name is Laurie Wheelock, I'm the litigation and policy counsel for the Public Utility Law Project.

Our acronym is PULP, we are forty year old

Proceedings

nonprofit organization. We are based in Albany but we operate statewide to help utility customers, especially those that are low and moderate income.

We operate a hotline 24 hours a day, offer free assistance to utility customers facing termination notices, who fall behind on their bills. We work with the company to make sure they don't lose their service.

Besides running a hotline we also are parties to a lot of the Commission's public policy cases, and in this instances the rate case itself. So PULP is an active party in the National Grid cases, both here and in Brooklyn and in Long Island, and we will be submitting both (inaudible) testimony and rebuttal testimony in this case.

We want to start by thanking you all for deciding to hold the Public Statement Hearings this early during the rate case. It will help PULP and many other groups that are parties inform our testimony when we submit that, so thank you so much.

We are here today to really raise the

Proceedings

final three issues and a lot of it has been said already today, but I feel it's important to be (inaudible) from PULP, and the first point is the affordability.

We heard that it's 13.93% increase in delivery rates. We heard that it's a $196 million more that customers will be paying, and we've heard that it's $13.33 a month. But for the people that PULP helps, $13.33 a month is a lot. People are struggling in Brooklyn already. I helped a woman just this week who had $6.50 in her bank account and was struggle to figure out if she use that for MTA fare, or if she could pay that for company.

I wanted to add some statistics as well. We all say that Brooklyn is struggling, we all feel it, but if you look at the (inaudible) report, 36% of woman-led households with children present are currently living below the poverty level in Brooklyn. 22% of our seniors are living below the poverty level in Brooklyn, and 72% of residents with an associates degree or less are living below the poverty level. Brooklyn is struggling.

Proceedings

If the Public Service Commission approves the company's request as is it's going to be that much harder for our customers and our consumers to afford to live here. So, we therefor ask the Commission to scrutinize National Grid's request and make sure the rates the customers end up paying are affordable and are fair.

The second piece that I want to touch on is the superfund costs. This is something that PULP worked on very hard in 2016 to prevent from happening. Back in the day the company shared a percentage of those cleanup costs, we fought very hard to make sure that that share stayed, but we unfortunately lost in 2016.

Using (inaudible), our forensics accountant's research, he looked at a lot of the annual reports the company supplies as far as the service costs and the cleanup costs and the liability cases. And what we discovered is when you look at Newtown Creek and the Gowanus Canal, both of which are, you know, home to Brooklyn, and then you look at these reports, if you see that in the last ten years, from

Proceedings

2009 to 2018, National Grid's environmental liabilities have soared, from $371 million dollars to $1.2 billion dollars.

Now a lot of this information is estimates. A lot of the individual site information is confidential, but, again, through these reports and Bill's research we project at least 80 percent of the environmental liabilities at the end of 2018 were associated with estimated cleanup cost of both the Gowanus and the Newtown Creek Superfund Sites.

PULP believes that National Grid's environment liabilities are going to approach close to two billion dollars by 2022. And that this is going to have serious impacts on the customers who are paying for these costs. PULP finds this to be completely unacceptable and we call on the Commission to help us right this wrong.

The third aspect I want to touch on and we've heard a lot about tonight is the moratorium. We have heard from elected officials from all over Brooklyn, we've heard

Proceedings

from consumers, we've heard from developers, we've heard from affordable housing projects, we've heard from residential customers who are completely confused by the moratorium.

At first we thought it was new connections, but now we hearing in a lot of cases it's similar to the gentleman who was here today, who had service, made some repairs and then no longer can get the service again. And again, it caused a confusion.

For those customers who don't know what to do, we are afraid that they're going to make the choice to move to electric. That is going to be extremely costly for a lot of the residential customers and small businesses that are trying to get off the ground.

So we join with the Assembly, we join with the other elected officials who called for an investigation, similar to the one that Con Edison is going through in Westchester, but here in Brooklyn, to look into the gas moratorium.

On a sidenote, PULP is very concerned about the July 8th email that National Grid sent to its customers, encouraging them to lobby

their elected officially on the NESE pipeline. Not even talking about the pipeline itself, PULP has concerns about the use of the emails. We don't know of any other situation where a utility company has actively encouraged through use of emails given to them for specific purposes, like e-delivery, to then contact them and encourage them to lobby for a third-party site.

We have a lot of questions that we will follow up with the company on either through interrogatories and maybe an offline meeting, but I had wanted to say that tonight because it's something that is deeply concerning to us.

So, in the end, our main points that we wanted to echo tonight is that we have to look at the rate case and make sure that the rates the customers are pay are affordable, and that includes scrutinizing what's going on with the superfund costs.

We ask that the Public Service Commission work with us to make sure there is some sort of fair agreement so that the ratepayers are not bearing the costs of the various cleanup costs

Proceedings

to the Newtown Creek and Gowanus Canal.

And last but not least, we request that an investigation be put into National Grid's gas moratorium here in Brooklyn, just as the Con Edison investigation in Westchester.

Again, my name is Laurie Wheelock, I work for the Public Utility Law Project, thank you so much for allowing me to testify tonight.

ALJ COSTELLO: Thank you.

(Applause.)

ALJ COSTELLO: Joseph Guarinello.

MR. GUARINELLO: Thank you Commissioner, thank you, your Honor, for allowing me to bring in testimony.

My name is Joseph Guarinello, I'm vice president for Energy Programs for HeartShare Human Services of New York.

For 35 years HeartShare administered National Grid's Energy Assistance Program, and I'm here to testify that not only us, but there are 50 community organizations who get together each year to help those who are most vulnerable.

And though I understand that this rate

Proceedings

case proposes to increase the rate, I think you have to take into consideration that there are many programs the company puts forth to help those that are most vulnerable.

I'm here to speak for those that don't have a voice. And each and every year these people are not people who won't pay their bill, but people who can't pay their bill.

And so I very clearly understand that an increase on top of that is just another place that they're not going to be able to afford.

We have to come to some solution, and I realize that greed, is the answer, but greed is not the answer today. It's going to take us ten years to build the infrastructure to really be able to utilize (inaudible).

So in that time, there's going to be a lot of costs to keep our neighbors safe and keep them heated.

Now, National Grid had a program, it has a program, to actually convert oil to gas, and when you look inside that envelope, many of the customer who can apply for this, are those that are most vulnerable, living at a hundred and

Proceedings

fifty percent of the poverty level, and if you look at their equipment, it is probably the most inefficient equipment that exists. So they're probably spending twice as much, and not having enough resources to actually pay their bill, and they don't have enough resources to actually upgrade their equipment.

So there are programs that are in place to try to help these people to bring them all up, so that they can survive and they can stay warm.

So, I'm here to give testimony that the company has a social side. And they do care about the customers that they serve.

So I appreciate the time, and my name is Joseph Guarinello, HeartShare Human Services. Thank you.

ALJ COSTELLO: Matt Gove.

MR. GOVE: Hello, my name is Matt Gove and I work for the Surfrider Foundation, thank you so much for having us tonight and listening to us.

I also live in Brooklyn, so I'm not super excited about a rate increase, and the whole

Proceedings

thing is a little bit weird tonight, that presentation -- I don't know if that guy is still here -- it's weird to get like a half hour presentation that was like a commercial but for a product that you have no choice but to buy, so that was weird.

I think National Grid should be a nonprofit. I think the State should takeover their roles and have them do only good things for us, not pit us against each other.

I am excited because a lot of people here agree on the same thing. We all agree that this moratorium smells very fishy and we all want some sort of investigation into the moratorium. It's so strange because the timing doesn't work, you know, they're saying things are going to be shut off, it's crazy, but they had years to be ready for this.

So I don't know -- the timing doesn't make sense to me. I feel like they're holding us hostage, trying to pit us against each other. I got that weird email that was like -- you better call your elected official and tell them that you want this thing. I was like -- like

Proceedings

your rates are going to go up if you don't do that, but your rates are going to go up either way, right?

Because we're talking about a rate increase today but another rate increase -- it doesn't make any sense, seems like the rates are going up either way. So there is something weird going on here with National Grid, it is a private company.

I think probably most people were here for Sandy. I was lucky, I didn't get flooded. And it's weird because we're talking about building, aside from all the fees going up, we're talking about building a giant new natural gas pipeline, and natural gas makes carbon, and carbon makes climate change, and climate change makes Sandy. So it's just a weird situation where we're saying we want to make it worse (inaudible) since Sandy.

So, I think there's a middle ground here, and there's a lot of things that we could all agree on, I think we need to look into what's going on with National Grid because there's so many weird things that are going on.

Proceedings

Because, obviously, they build another pipeline, they sell more gas, they make more money. So there's an incentive for them to sell more gas. And I think they're trying to pit people against each other and scare people. I got that email, and I was like -- it sounded like an apocalypse was going to happen if the pipeline doesn't go in.

I don't think that's going to happen. We have a lot infrastructure here and we can have other choices, we can do conservation, we're throwing our money around on these pipelines.

So I hope that made some sense, when you walk back home, thank you all for listening to me, and thank you for coming out tonight too. Thank you for listening to us.

ALJ COSTELLO: Thank you. Andrew Sessa?

(No response.)

ALJ COSTELLO: Reggie Nance?

MR. NANCE: Thank you, Judge Costello and Commissioner Burman for the opportunity to speak. I'm Reggie Nance and I'm the Associate State Director with AARP New York for the Borough of Brooklyn, and I'm in the room with a

Proceedings

number of our AARP volunteers, who are all National Grid customers.

I'm speaking on behalf of AARP'S members in Brooklyn, Staten Island and Queens today to say that we oppose the rate increase request of National Grid.

Rate increases have a greater impact on older consumers and lower income customers. Too often, older adults with low or fixed incomes must chose between cutting back on energy and cutting back on other necessities such as food and medicine.

Older adults may be risking their health or comfort because when their home energy prices are high, older adults may be unable to adequately cool and heat their homes.

AARP New York has consistently heard from our members that many struggle to pay their utility bills and make ends meet. In addition, they have already been struggling to absorb the last three years of rate increases.

According to the Public Utility Law Project, whom you heard from earlier, an average of fifty percent of National Grid

Proceedings

Residential Ratepayers continue to fall more than sixty days behind in paying their monthly bills, and an even large percentage of customers overall are likely to be more than one month behind in paying their bills.

So, now on top of that, National Grid wants to increase its gas delivery rate by over nineteen percent. Translating to $16.60 a month more on the average bill, or two hundred dollars a year. In total that's $236 million dollars in all.

This rate increase is unacceptable to AARP. We urge the Public Service Commission to carefully scrutinize this request.

AARP is also concerned about the utility's requirement that elderly and disabled customers physically come into the company's offices to negotiate payment arrangements. The company should allow customers to do this over the phone.

Further, we are alarmed at the costs of the superfund cleanup, as you heard a whole lot from in the testimony here tonight, which will add one billion to two billion dollars to

Proceedings

customers' bills over an extended time.

The Public Service Commission must find a solution that does not unfairly burden ratepayers.

Finally, we encourage the utility to ensure that eligible customers are enrolled in low income rate and other utility and non-utility assistance programs, because if you don't know them you can't be enrolled in them.

Again, AARP New York appreciates this opportunity to comment. Thank you.

ALJ COSTELLO: Thank you.

(Applause.)

ALJ COSTELLO: Next is Stephanie Goulet.

MS. GOULET: Hello everyone. Can you hear me? Good. Thank you for having me. My name is Stephanie Goulet and I moved to Brooklyn about two years ago.

I'm here today at my first public hearing because the few will soon decide for all of us whether or not National Grid will unnecessarily increase our rates to finance expansion of natural gas infrastructure.

There are many reasons to oppose this

Proceedings

outside of this, but I personally find that the most alarming is how acceptance will further entrench us in a broken system of fossil fuels.

I recently read a book called The Great Rhino, which illustrates the many examples our society often neglects threats that can have a devastating impact, even when the consequence of not taking action are highly probable.

We all inherited the fossil fuel system that's currently in place but allowing National Grid to fund additional gas infrastructure is a great rhino right here in this room.

This threat is in the form of the frighteningly neglected potency of methane leaks and the prolonging of our transition to renewable energy availability, such as wind or solar.

We face this charging great rhino right now but rejecting this rate hike will dodge the rhino before it tramples us.

Please move us toward affordable, safe, secure, transparent and reliable access to energy and away from all fossil fuel infrastructure.

Proceedings

Thank you again for the opportunity to be here today.

ALJ COSTELLO: Thank you.

(Applause.)

ALJ COSTELLO: Ruth Berkovits, I don't know if I'm saying that correctly.

MS. BERKOVITS: Yes. I heard about this meeting from community (inaudible) organization. I am a constituent and I live in Brooklyn.

I am presently a widow. I work full time and support a disabled daughter.

I recently had -- last year I hired a contractor who filed all the proper paperwork to redo my first floor so that I could get a rental income from the second floor.

I am presently living in the second floor. But the past few months I was unable to move in because I cannot get any gas. I can't get a gas meter, although I have gas, (inaudible) on the first floor. I cannot use my new gas oven or any utilities because of, I was told there would be a moratorium.

Now my contractor filed the papers in May

Proceedings

of 2018. I was told that in May, 2019, there would be a moratorium and I cannot get a meter for the first floor.

I am really right now in a pickle because although I'm working full time, I still need, need to make ends meet.

And I feel that this is very unfair for hard working people in my area, especially myself.

Thank you.

ALJ COSTELLO: Thank you.

(Applause.)

ALJ COSTELLO: Angelina Garneva.

MS. GARNEVA: Thank you so much for holding this much needed public hearing on this critical issue. My name is Anne Garneva and I'm a resident of Brooklyn, a customer of National Grid and a volunteer active (inaudible) with Stop The Pipeline Coalition.

I'm also a person that likes to breath clean air without methane in it and swim in water without mercury and copper, but maybe that's just me.

Despite electricity functioning as a

public utility, the system that manages it is anything but accessible, public, or working for the best interest of our community. This is why I'm here to, in the short term, voice opposition to National Grid's request to raise rates on customers like myself, and in the long term advocate that our City and utilities move to systems that source electricity and energy needs from renewable sources and prioritize its customers and environment over shareholders.

So, I have several points to make. One, I don't think money should be, new money should be invested for gas infrastructure.

The purpose for National Grid's increase requests is to spend hundreds of millions of dollars replacing 310 miles of leak-prone pipeline and other fossil fuel infrastructure, and then who knows how many other things that they are just not naming, because they have history of changing things after they get their rate increase.

With pipelines, power plants and other such infrastructure having approximately a forty year lifespan, this means at least

Proceedings

another forty years of human and planet destroying fossil fuel use by one of the world's biggest and growing urban communities.

This is not how I want our money to be spent. Instead National Grid should be working to reduce gas demand through energy efficiency, beneficial electrification and heat pumps, as well as investing in renewable sources of energy, such as solar and wind power.

I'm already doing my part in this by paying an additional ten dollars a month to my bills to ensure that my apartment's energy is sourced from renewables. If I can do this, so can a lot of other people, while others can't, and that's perfectly fine. So therefor if National Grid and the City should pick up on this.

Two, the climate crisis and a variety of legislation has to go forward. This request is also in direct opposition to the State's recent passage of the Climate Leadership And Protection Act and the City's passage of (inaudible) 1253, which is about energy efficiency, both of which mandate the reduction

Proceedings

of greenhouse gas emissions and the prioritization of renewable sources of energy.

Fracked gas (inaudible) which is mostly methane which is 84 times more potent than greenhouse gas, than CO2 for the first twenty that it's in the atmosphere.

National Grid already has some of the highest methane leakage rates in the country and the PSC itself recently found that National Grid committed over sixteen hundred violations while working on the pipeline in Queens.

Our ratepayer dollars should not go to extending the life of pipelines when the company has already proven it cannot do so safely.

I wouldn't get a pass like this in my daily life, or in my job, so I don't know why this kind of monopoly, there's very little oversight from the public, then a very specific public commission, should get such a pass over and over again.

Unless we're fine with the idea of most of our future days being like those of the heatwaves of the past few weekends, the buildup

Proceedings

of more fossil fuel infrastructure such as the gas pipelines is absolutely unacceptable.

Whichever way it happens, New York City and the world are moving toward a sustainable future of renewable energy. Now both science and Local and State law are mandating that this transition takes place within a few decades.

This request for a rate increase runs contrary to both of these facts and the PSC has no choice but to deny this rate increase request.

And last but not least, the last three years I've been working with Stop The Pipeline Coalition, a group of New Yorkers from a wide variety of organizations and backgrounds who are committed to stopping the proposed NESE pipeline that will destroy our thriving New York Harbor, beaches and Marine land and ecosystem for the sake of bringing unnecessary fracked gas from Pennsylvania for the use by National Grid.

National Grid is trying to use this rate case as it has used past rate cases to justify need for construction of the Williams NESE

Proceedings

Pipeline. A report from a former DEC regional director proves there is no gas shortage and, says here -- maybe I'll put this in what I submit online -- that link is found at 350Brooklyn.org, and that projected claims made by National Grid about the future of gas demand are contrary to current conditions and trends in the energy demand.

Furthermore, National Grid sent emails to customers like myself, encouraging us to lobby on their private corporate behalf in favor of the pipeline.

This only took place after National Grid manufactured a false public crisis that we have all talked about and definitely needs to be investigated, by announcing a moratorium on new gas hookups. That potentially violates State procedures meant to protect ratepayers.

This is an incredibly egregious example of a monopoly that is meant to work for the public, twisting its power through scare tactics and manipulation, in order to squeeze out more profit from the system it knows is dying. We don't need to die with it.

Proceedings

On top of all this, the construction of Williams Pipelines have drastic consequences, such as the release of industrial toxins such as mercury and copper (inaudible) sand for decades, back into our water, beaches and food systems, and the destructions of 24 miles of marine life and sensitive benefit communities that are vital to the ecosystem.

Not only is this proposed project harmful, it is highly unpopular among New Yorkers. A new poll conducted by the independent firm (inaudible) research found that by margin of five to one, New Yorkers support the expansion of clean energy renewables over the continued development of dirty fossil fuels like the fracked gas pipeline.

So, instead of spending money on the expansion of fracked gas infrastructure, National Grid should be working to reduce gas demands for energy efficiency, beneficial electrification and heat pumps, and invest in renewable energy direction.

When a system says that the rational choice of a few dollars today over a no planet

Proceedings

tomorrow it has ceded all forms of trust and logic and has become insane.

It is beyond time that we stop listening to (inaudible) and start building a sane and thriving world. The rate increase request for the potential of fossil fuel infrastructure by National Grid must be denied.

And I would also like to ask a few questions, publically ask National Grid; one, what is your New York City and your New York State profit margin? And from that margin, what is the rate of return for investors on those profits verses what goes back to ratepayers? What percentage of these profits is reinvested back into infrastructure and especially alternative sources of energy? And not just what percentage, but how do you make that accessible to customers and how does that compare to profit margins that have invested into fossil fuel and infrastructure that perpetuates the system? And how does that compare to the subsidies that they received for fossil fuel infrastructure over the last four decades?

Proceedings

That's it. Thank you.

ALJ COSTELLO: Thank you.

Jackie Weisberg.

MS. WEISBERG: Thank you very much for this hearing today. My name is Jackie Weisberg, I have lived in Brooklyn for most of my life, and I'm vehemently opposed to the rate hike proposed by National Grid in order to build a dangerous and unnecessary pipeline along our shores.

National Grid is attempting to use this rate case to create a false justification for construction of the Williams NESE Pipeline, which would bring fracked gas into New York City from Pennsylvania.

The recent report from a former DEC Regional Director, (inaudible) that Annie talked about, proves there is no gas shortage.

Furthermore, for National Grid to send emails to its customers, encouraging them to submit popular comment in favor of the pipeline is both unethical and reckless.

Over the next four years National Grid is proposing to spend hundreds of million of

Proceedings

dollars replacing 310 miles of leak-prone pipeline. We should be replacing leaky pipes with truly renewable forms of heat, not spending million of dollars on pipeline that will become stranded, stranded assets as we transition to renewable energy.

Instead of spending money on the expansion of fracked gas infrastructure, National Grid should be working to reduce gas demand through energy efficiency, beneficial electrification and heat pumps.

The fact is, demand for natural gas is expected to fall in the New York Metropolitan Region. Furthermore, support for offshore wind on Long Island and New York City is very strong.

After failing to implement aggressive energy efficiency, renewable energy and demand management programs in order to reduce gas demand, the utilities are attempting to bully elected officials, agencies and regulators with this moratorium, and into reviving a cozy business arrangement. They want more pipelines that allow them to inflate their profits after

Proceedings

they pass along their costs in the form of rate hikes.

Here are some facts. Natural gas is not a bridge fuel. Leaked methane is 86 times as powerful a greenhouse gas in the short term as carbon or CO2. Scientists now know that methane leaks all the time and as much as 11 percent. When as little as 3.2 percent leaks it's as bad for the climate as burning coal.

The EDC is wrong about the importance of gas because they don't take methane leaks into consideration, which is a huge oversight. The pipeline will have nothing to do with electricity rates since the gas would only be used for heat.

Building, not blocking the pipeline, is what would raise rates. National Grid will pass the costs of the one billion dollar pipeline along to ratepayers while extracting profits. At an estimated cost of just under a billion dollars, yet delivering to an area that has no shortage of gas, it is both unnecessary and expensive. Williams will be reimbursed for the costs, plus interest, by the sole customer

for this fracked gas, the units of National Grid that serves Staten Island, Brooklyn and parts of Queens and Nasau County.

National Grid claims it will need the gas to supply customers' in the future, but that is only the case if New Yorkers continue to accept a future built on fossil fuels.

As we continue to build solar and wind systems, adopt battery storage, incorporate technologies like geothermal, we will need less gas, not more.

Building new pipeline in the areas that were ravaged by Super Storm Sandy is simply unconscionable. Hurricanes are horrifying reminders of the destructive source of storms in an age of warming temperatures. And if we want to confront the threat of climate change we must end our reliance on fossil fuels.

Construction of this pipeline would threaten human health. The sea bed that would dug up for this pipeline contains unsafe levels of toxic substances such as arsenic, PCBs and dioxin.

In addition to turning up toxins into the

Proceedings

seawater, the unrelenting construction which is supposed to go on for nearly a year, 24/7, and that's their estimate -- with its noise and water turbidity it's going to harm marine life.

The PSC recently found that National Grid committed 1,616 violations while working on pipelines in Queens. Our ratepayer dollars should not go to extending the life of pipelines when the company has already proven it cannot do so safely.

The future of heating buildings lies with heat pumps and filters and renovators can get them right now. Anyone who has visited Saint Patrick's Cathedral in Manhattan recently has experienced the effectiveness of their heat pump system; warm in winter, cool in summer. Because heat pumps are so efficient, home and business owners would save hundreds of dollars a year in heating and cooling costs, and they could switch right now.

The last thing I'm going to do is I'm going to hand in a list of the accidents, compliance and safety records of the Williams Company.

Proceedings

I can only tell you that there have been so many egregious, horrifying accidents, where people have died. Up to nine people are dead. Towns have been evacuated. Combustion explosions decimating homes, eminent domain where people have these pipelines running through their backyards, trees fell, it goes on and on and on.

If I sound emotional, it's because I am.

So, I would recommend that you look at the report, you can go to 350Brooklyn and see Suzanne (inaudible) report proving that there is no gas shortage. It's a lie. And that's what they do. So we need to have public utility. Thank you very much.

(Applause.)

ALJ COSTELLO: Thank you. Justin Pascone.

MR. PASCONE: Thank you. My name is Justin Pascone, I'm here on behalf of the New York Building Congress. I would like to read a letter that was submitted by our president and CEO Carlos Scissura to this Commission.

The letter begins that I'm writing in support of National Grid's rate proposal for

the New York Metro Service Area. The Building Congress is a nonpartisan coalition of business labor, professional and government organizations serving the design, construction and real estate industry. Our association is made up nearly 550 organizations comprised of more than a quarter million professionals committed to the health of New York City residents, environment and the economy.

It's imperative that we have safe, reliable, economical and resilient supply of gas delivered to the residents and businesses in the New York Metro area every day.

While National Grid has a long history of serving customers, investments to continue monetizing infrastructure, implement and improve safety requirement and improve customer services are necessary.

I realize this will increase the monthly delivery charge but I think it is necessary in order for National Grid to operate effectively, and implement innovative technologies and incentivize conservation, and maintain the natural gas infrastructure to support the long

Proceedings

term economic growth and viability of the region.

The rate case proposal also presents opportunities for National Grid to continue transitioning into the cleaner energy of the future. The company's blueprint to reduce greenhouse gas emissions in coordination with City and State plans passed recently will help achieve public policy goals for a cleaner future for the New York Region.

Nation Grid's initiatives to connect customers to programs and services will help them take control over their own energy costs, helping them save money on their bills while helping to ease (inaudible) on our system and environment.

The New York Metro communities are thriving and should remain so for business and residents, having a strong and reliable sustainable energy systems to continue progress. We need a responsive utility like National Grid working for us to provide safe, reliable and sustainable service and lead us into a cleaner energy future.

Proceedings

Thank you for you time.

ALJ COSTELLO: Keith Wachtel.

MR. WACHTEL: Hello Commissioner, hello, your Honor. I am a real estate developer. I buy distressed properties and renovate them, and in a lot of cases these distressed properties haven't had gas on for a long time, the meters are removed.

And I'm in a situation like a lot of people here, where the moratorium is affecting me. Where they won't turn my gas back on. In some cases I've installed new equipment inside the buildings, running gas lines and now they tell me, you can't use your equipment, that I just spent thousand of dollars on.

Not only that, I'm in the process of renovating my house which is in Queens, not Brooklyn, but I own many properties in Brooklyn, and I'm installing geothermal heat, which I'm still using natural gas for my cooking stove and my dryer, my clothes dryer, because that to me is more efficient than using electric.

I also have in some properties, heat

Proceedings

pumps. Now heat pumps are great. Geothermal is great, but if everyone is using electricity, what people don't realize is, like two weeks ago, we had a power outage. So, if everybody is using heat pumps, and heat pumps are only good up to a certain temperature, where then they have to have heat filaments, or electric heaters in the house. And that's subject to Con Ed losing power. They lose power and it's ten degrees out, well you have a bigger problem than when it's a hundred degrees and your air conditioner doesn't work. Pipes are going to break. People who are elderly could possible die. And it's a very serious thing to think that Con Edison could have a power outage. And con Ed's equipment is very old and antiquated and they're not keeping up with their equipment.

And out of the two, a lot of people say do you use Con Edison for natural gas and National Grid? National Grid is a much better supplier of energy. That's from experience, and I have a lot of experience in doing this.

And I just think that the moratorium must

Proceedings

be lifted. It's just unfair to homeowners and to new businesses. It's just ridiculous that they turn around and say, sorry, we can't help you, you can't have gas. It's just wrong. It's crazy that they're doing this, you know, without warning.

And I'm actually putting up two brick family houses in the Bronx because it was Con Edison, and Con Edison is so bad, we've decided to go totally electric there -- but, because I have no choice. Getting gas from Con Edison, moratorium or no moratorium, is worse than National Grid. National Grid is actually much better.

So, please do what you can to lift the moratorium because it's insane, it really is.

Thank you.

ALJ COSTELLO: Thank you.

(Applause.)

ALJ COSTELLO: And we'll try again, Andrew Sessa?

(No response.)

ALJ COSTELLO: All right. We've come to our last speaker, is their anyone else that

Proceedings

wants to make a comment?

(Audience indicates yes.)

ALJ COSTELLO: Forgive me if I mispronounce this, Michael Macrorosi?

(No response.)

ALJ COSTELLO: Okay. Israel Eidelman?

MR. ELDELMAN: Good evening Judge Costello, good evening Commission Burman, my name is Israel Eidelman.

A couple years ago I ventured into the industry of the food business, I'm in business in New York, here in Brooklyn.

A friend and I decided we were going to open up a restaurant in Brooklyn, and pretty much raised money from some family and friends.

We started this venture almost two years ago. It was hard enough dealing with the (inaudible) and all the redlining and all the issues that there is in New York, you would think that really want to be, to strive to have your own business, but they make it as hard as they can.

Finally, we're almost two years into the project, we're hundreds and hundreds of

Proceedings

thousands dollars into the project, and recently, a couple months ago, we're all excited to open up the restaurant, we're starting to get exciting, we had the gas authorization, I hire all my employees, we had close to 15 plus employees that we hired, and, you know, suddenly they tell us, you can't get any gas. What do you mean? You can't get any gas.

I find it -- first of all, I forgot to mention, I find it insane that there's not more people here tonight, because I know that there is a ton of people facing this issue and I know that if people don't come here it's not going to change.

But it's really frustrating, the fact that we have invested so much time, borrowed money from family and friends that are in debt now because of this, and for them, it's -- I find it ludicrous that they're saying that you need a pipeline that will only be ready in a few years, it seems like a big money grab to me, and the fact that, you know, simple people like us had no prior warning or anything, is insane.

Proceedings

And I urge you guys to do something ASAP because I know that tons of people are going to be affected. I feel, I'm here myself. I'm not a real estate developer, I'm just a simple guy that's been working hard the past eight years that's been trying to grow, and it's -- it's insane. And that all that I got.

ALJ COSTELLO: All right. Thank you.

What's the name of the restaurant?

MR. ELDELMAN: Issy's Brooklyn Smoke House. This is actually our second opening, it's called Issy's Fried Chicken.

ALJ COSTELLO: Thank you.

Ben Solotaire?

MR. SOLOTAIRE: Thank you Commissioner and Judge Costello, I just came here tonight to listen and to learn and, but I decided that I was compelled to speak. I don't want to address all the topics but I felt I wanted to address the superfund issue.

The superfund was designed, the whole process, was designed as a mechanism to recoup costs from government by responsible parties for contamination on our environment.

Proceedings

For centuries, or more than a century, corporations were allowed to pollute our land, our soil and water, with numerous toxins that they produced as a way to make things profitable. And they just disposed of them, wantonly, without any concern for the safety of the community.

As that happened, those corporations grew and became quite profitable, and they were bought by other corporations and they merged, and now they are owned by many corporations, National Grid, and many others.

So, the purpose of the superfund is to make sure that those corporations that have benefited from buying other companies, or just growing, are also to be responsible for the liabilities that those companies caused, and the damage that those companies caused.

So now, to allow them now to have a hundred percent reimbursement of expenses on the backs of ratepayers, whose lands and water they contaminated, is inexcusable. It's antithetical to the process of the superfund, and it is not something we should allow.

Proceedings

So for a hundred percent reimbursement to be borne by us for the toxins that they are either responsible for or have taken on is unacceptable.

So, I wish the Commission would consider that and not allow a hundred percent reimbursement for that.

For the Gowanus Canal and midtown creek, are the two of the most contaminated water bodies in the country. They're incredibly vital, they are important parts of our community. I've been in Brooklyn for thirty years and getting them cleaned up is important and necessary, but again, a hundred percent of that should not be the burden of the ratepayer. Thank you.

(Applause.)

ALJ COSTELLO: Thank you.

Elizabeth Adams.

MS. ADAMS: Hi, good evening thank you Commissioner and Judge Costello for being here tonight.

I am here in my capacity on behalf of local Council Member Steve Levin, who

Proceedings

represents the 33rd District of Brooklyn. I just wanted to read a few remarks.

So, good evening Commissioner and Administrative Law Judge Costello, and to the customers, advocates and community members here tonight.

I represent the 33rd District which includes Greenpoint, Williamsburg, Downtown Brooklyn, Brooklyn Heights, DUMBO and Boerum Hill.

And here to speak on my behalf of my constituents who rely on National Grid to provide cost affordable energy and who are extremely concerned by the proposed rate increase, which would increase consumers' costs by fourteen percent of their monthly bill.

And while the company has lowered its proposed rate increase, it's still a double digit increase on people who are already struggling to pay their monthly bills.

National Grid's rates are among the highest in New York State, and for many of our constituents living on a fixed income, an additional increase is simply too high a burden

to bear.

And our district is not alone, according to research by the Public Utility Law Project, nearly half of the company's customers cannot currently afford their utility bills, a rate increase notwithstanding.

So, with these increased costs, National Grid proposes to modernize the company's gas infrastructure by replacing ancient pipelines, enhancing safety, enhancing storm resiliency and producing (inaudible).

And these are all important investments, however we need to question why and how these costs are being passed on to the customers.

In 2016, as has been mentioned, National Grid raised consumer costs to pay for their portion of the Newtown Creek and Gowanus Canal Superfund Site Cleanup. National Grid accepted responsibility for these costs because of a century of decision-making, poor decision-making, that resulted in the $1.2 billion environmental liability, which as we've heard, is now expected to be up to $2 billion in the coming years.

Proceedings

Both of these superfund sites happen to be in the 33rd District, and the fact that these costs are passed on to communities who bore the brunt of these decisions is an affront. Frankly, was unacceptable to suggest that low income communities, vulnerable ratepayers should take on the costs of cleanup.

So, today what we need to do is examine and consider who is paying these costs when we examine the proposed rate hikes. We have the opportunity to right the wrongs of the past, of what's happened in 2016, and put some of the burden back and those who are truly responsible. Not the consumers, not the customers, not the ratepayers, residents of Brooklyn who have been impacted by the environmental atrocities.

As such the company proposed rate hike must be heavily scrutinized and at the very least significantly rolled back if not rejected outright.

It's also important that we know that this proposed rate hike comes at a time when National Grid has implemented a moratorium on

Proceedings

providing any new gas connections in Brooklyn.

All these issues are distinct, the impact on my constituents' access to affordable energy options is only further compounded and raises serious questions.

The decision to cut off gas abruptly and without notice will likely cause customers to make the decision to switch to electric, which is much less affordable and shows a severe lack of regard for low income residents who are forced into a more expensive option.

As the Commission scrutinizes the need for a proposed rate hike, I also ask for you to throughly investigate the company's reasoning for its gas moratorium and their plans for (inaudible).

National Grid and its shareholders need to pay their fair share. The current lack of transparency of the company's superfund cleanup costs and gas pipe shortage is extremely concerning.

We should not allow National Grid to unfairly shake their responsibility onto the ratepayers and to vulnerable consumers across

Proceedings

New York.

Thank you for your consideration and for holding tonight's hearing.

ALJ COSTELLO: Thank you.

Is there anyone else that we have, any further speakers?

(No response.)

ALJ COSTELLO: With that we are going to close tonight's session.

The next Public Statement Hearing for this company will be in Staten Island at the Saint George Library Center, that will be on August 21, 2019. We will have an information session at 1:00 p.m. and the public hearing will be at 2:00 p.m., and it's likely that we may be scheduling another one on that day for the evening. Not confirmed yet but we are looking into that. A notice will go out if that is in fact the case.

So, thank you everybody and have a good evening.

(Time noted: 8:18 p.m.)

Proceedings

STATE OF NEW YORK)
) ss.
COUNTY OF WESTCHESTER)

I, DEIRDRE SMITH, Court Reporter and Notary Public with and for the County of Westchester, State of New York, do hereby certify that I reported the proceedings that are hereinbefore set forth, and that such transcript is a true and accurate record of said proceedings.

I further certify that I am not related to any of the parties to this action by blood or marriage, and that I am in no way interested in the outcome of this matter.

WITNESS MY HAND, this 7th day of August, 2019.

Deirdre Smith

Deirdre Smith — My commission expires:
Notary Public — April, 2020

A

AARP (7) 2:13 33:24 34:2,18 35:14 35:16 36:11
AARP'S (1) 34:4
able (5) 14:10,11 20:20 29:12,17
abruptly (1) 66:7
absolutely (4) 17:10 20:16,17 43:3
absorb (1) 34:21
accept (1) 50:7
acceptance (1) 37:3
accepted (1) 64:19
access (2) 37:23 66:4
accessible (2) 40:3 46:19
accidents (2) 51:23 52:3
account (1) 23:13
accountable (2) 10:16 12:24
accountant's (1) 24:17
accurate (1) 68:12
achieve (1) 54:10
acronym (1) 21:25
Act (1) 41:23
action (2) 37:9 68:15
active (2) 22:14 39:19
actively (1) 27:6
Adams (3) 3:4 62:20,21
add (2) 23:16 35:25
addition (3) 16:15 34:20 50:25
additional (4) 21:10 37:12 41:12 63:25
address (3) 19:9 60:20,21
adequately (1) 34:17
administered (1) 28:19
Administrative (7) 1:14 4:8 15:11 18:21,23 21:20 63:5
adopt (1) 50:10
adults (3) 34:10,14,16
advocate (1) 40:8
advocates (3) 15:14 21:21 63:6
afford (6) 12:17,18 18:3 24:5 29:12 64:6
affordability (1) 23:5
affordable (11) 8:13,18 9:13 13:7 24:8 26:3 27:19 37:22 63:14 66:4 66:10
affront (1) 65:5
afraid (1) 26:13
age (1) 50:17
agencies (1) 48:22
aggressive (1) 48:18
ago (8) 10:17 11:15 18:3 36:19 56:5 58:11,18 59:3
agree (4) 20:8 31:13,13 32:23
agreement (1) 27:24
air (2) 39:22 56:12
alarmed (1) 35:22
alarming (1) 37:3
Albany (1) 22:2
ALJ (33) 4:2 5:8 15:6,8 18:17,19 18:23 21:16,18 28:10,12 30:19 33:18,20 36:13,15 38:4,6 39:12 39:14 47:3 52:18 55:3 57:19,21 57:24 58:4,7 60:9,14 62:19 67:5 67:9
allow (6) 35:20 48:25 61:20,25 62:7 66:23
allowed (1) 61:3
allowing (3) 28:9,14 37:11
alternative (1) 46:17
amount (1) 21:6
ancient (1) 64:10
Andrew (2) 33:18 57:21
Angelina (2) 2:17 39:14
Anne (5) 2:7 15:16 18:19 19:2 39:17
Annie (1) 47:18
announcing (1) 44:17
annual (1) 24:18
answer (3) 6:12 29:14,15
antiquated (1) 56:17
antithetical (1) 61:24
apartment's (1) 41:13
apocalypse (1) 33:8
apologize (1) 6:15
Applause (10) 15:7 18:18 21:17 28:11 36:14 38:5 39:13 52:17 57:20 62:18
apply (1) 29:24
appreciate (1) 30:16
appreciates (1) 36:11
approach (1) 25:15
approve (1) 21:14
approves (2) 16:9 24:2
approximately (1) 40:24
April (1) 68:23
area (4) 39:9 49:22 53:2,14
areas (1) 50:13
arrangement (1) 48:24
arrangements (1) 35:19
arsenic (1) 50:23
ASAP (1) 60:2
aside (1) 32:14
aspect (1) 25:22
Assembly (14) 2:6,7 10:6 11:18,20 15:16,21,22 17:7,21 18:20 19:3,7 26:18
ASSEMBLYMAN (1) 15:9
assets (1) 48:6
assigned (1) 4:9
assistance (3) 22:7 28:20 36:9
Associate (1) 33:23
associated (1) 25:11
associates (1) 23:23
association (1) 53:6
atmosphere (1) 42:7
atrocities (1) 65:18
attempting (2) 47:12 48:21
Audience (1) 58:3
August (2) 67:14 68:19
authorization (1) 59:6
availability (1) 37:17
available (1) 21:6
average (2) 34:25 35:10

B

back (14) 4:23 5:4 14:2 20:15 24:13 33:15 34:11,12 45:6 46:14 46:16 55:12 65:14,21
backgrounds (1) 43:16
backs (2) 16:18 61:22
backyards (1) 52:8
bad (2) 49:9 57:10
bank (1) 23:13
based (1) 22:2
battery (1) 50:10
beaches (2) 43:19 45:6
bear (1) 64:2
bearing (1) 27:25
bed (1) 50:21
beginning (1) 11:5
begins (1) 52:24
behalf (7) 10:4 14:25 34:4 44:12 52:20 62:24 63:12
believe (2) 11:6 20:7
believes (1) 25:14
Ben (3) 2:25 15:17 60:15
beneficial (3) 41:8 45:21 48:11
benefit (1) 45:8
benefited (1) 61:16
Berkovits (3) 2:16 38:6,8
best (2) 6:16 40:4
better (5) 12:4 14:20 31:24 56:22 57:15
beyond (1) 46:4
big (1) 59:23
bigger (1) 56:11
biggest (1) 41:4
bill (6) 11:18 29:8,9 30:7 35:10 63:17
Bill's (1) 25:8
billion (8) 25:4,16 35:25,25 49:19 49:22 64:23,25
bills (11) 16:8,11 22:9 34:20 35:4,6 36:2 41:13 54:15 63:21 64:6
bit (1) 31:2
blackouts (1) 17:18
blocking (1) 49:17
blood (1) 68:15
blueprint (1) 54:7
bodies (1) 62:11
Boerum (1) 63:10
boilers (1) 7:25

book (1) 37:5
bore (1) 65:4
borne (4) 19:14,19 20:4 62:3
borough (3) 1:7 6:21 33:25
boroughs (1) 11:8
borrowed (1) 59:18
bought (1) 61:11
break (1) 56:14
breath (1) 39:21
brick (1) 57:8
bridge (1) 49:5
bring (3) 28:14 30:10 47:15
bringing (1) 43:20
broken (1) 37:4
Bronx (1) 57:9
Brooklyn (44) 1:5,7,8 4:5 6:22 7:21 10:5,14,20 11:8 15:22 16:19,21 17:9,13 22:15 23:12,17,21,22,25 24:24 25:25 26:22 28:5 30:24 33:25 34:5 36:18 38:11 39:18 47:7 50:3 55:19,20 58:13,15 60:11 62:13 63:2,10,10 65:17 66:2
Brooklynites (9) 6:22 8:8 10:21 15:2,14 16:7 17:25 18:4,13
brunt (1) 65:5
budget (2) 12:16,17
build (4) 29:16 33:2 47:10 50:9
building (10) 2:21 8:13 9:13 32:14 32:15 46:5 49:17 50:13 52:21 53:2
buildings (3) 14:9 51:12 55:14
buildup (1) 42:25
built (3) 13:8 20:24 50:8
bully (1) 48:21
burden (5) 17:2 36:4 62:16 63:25 65:14
Burman (11) 4:11,11,15,16,17 5:9 15:10 18:21 21:20 33:22 58:9
burning (1) 49:10
business (11) 4:5 9:12,17 13:7 48:24 51:19 53:3 54:19 58:12,12 58:22
businesses (5) 8:25 9:2 26:16 53:13 57:3
buy (2) 31:6 55:6
buying (2) 9:15 61:16

C

call (5) 4:2 5:22 9:9 25:20 31:24
called (4) 7:18 26:19 37:5 60:13
calling (1) 17:23
calls (1) 20:10
Canal (12) 16:22 19:4,11,15,21,24 19:25 20:2 24:23 28:2 62:9 64:18
capacity (1) 62:24
carbon (3) 32:17,17 49:7
card (1) 5:22
cards (1) 5:22
care (1) 30:14
carefully (1) 35:15
Carlos (1) 52:23
Carroll (6) 2:5 10:7 15:8,9,20 19:8
case (13) 1:3 4:2 17:10 22:14,18 22:21 27:18 29:2 43:24 47:13 50:7 54:4 67:20
cases (7) 22:13,15 24:21 26:8 43:24 55:7,13
Cathedral (1) 51:15
cause (1) 66:8
caused (3) 26:11 61:18,19
ceded (1) 46:2
Center (1) 67:13
centuries (1) 61:2
century (2) 61:2 64:21
CEO (1) 52:23
certain (1) 56:7
certify (2) 68:9,14
Chaim (3) 2:4 6:17,19
change (4) 32:17,18 50:18 59:16
changing (1) 40:21
channels (1) 14:7
charge (1) 53:21
Charges (2) 1:4 4:4
charging (1) 37:19
Chicken (1) 60:13
children (3) 14:20,23 23:20
choice (5) 26:14 31:6 43:11 45:25 57:12
choices (2) 12:4 33:12
chose (1) 34:11
Christina (1) 14:2
citizens (1) 12:22
city (17) 4:21 8:6,8,14,19 9:20,22 11:14 16:7 40:8 41:17 43:4 46:11 47:16 48:16 53:9 54:9
City's (1) 41:23
claims (2) 44:6 50:5
clean (2) 39:22 45:15
cleaned (1) 62:14
cleaner (3) 54:6,10,25
cleanup (13) 16:25 19:12,14,21 20:2 24:14,20 25:11 27:25 35:23 64:19 65:8 66:20
clear (1) 11:2
clearly (2) 5:24 29:10
climate (6) 32:17,18 41:19,22 49:10 50:18
close (3) 25:16 59:7 67:10
closes (1) 9:5
clothes (1) 55:22
CO2 (2) 42:6 49:7
coal (1) 49:10
coalition (3) 39:20 43:15 53:3
colleague (3) 10:9 11:17 15:16
colleagues (3) 10:23 17:6,21
Colton (1) 11:18
Combustion (1) 52:5
come (7) 10:24 13:14 14:25 29:13 35:18 57:24 59:15
comes (6) 8:14,19 9:6 12:24 14:3 65:24
comfort (1) 34:15
comfortable (1) 5:3
coming (4) 4:25 14:17 33:16 64:25
COMM,tNs (1) 4:16
commend (3) 7:3 10:6,8
comment (3) 36:12 47:22 58:2
comments (4) 5:2,11,12 19:6
commercial (1) 31:5
commission (25) 1:2,3 4:3,18 5:13 5:18 9:24 11:23 16:9,12,23 17:22 17:24 24:2,6 25:20 27:22 35:14 36:3 42:21 52:23 58:9 62:6 66:13 68:22
Commission's (1) 22:12
Commissioner (13) 4:10,11,15 5:8 15:10 18:21 21:19 28:13 33:22 55:4 60:16 62:22 63:4
Commissioners (4) 4:12,17,24 5:13
committed (4) 42:11 43:17 51:7 53:9
communities (7) 7:5 11:10 41:4 45:8 54:18 65:4,7
communities' (1) 10:25
community (8) 7:6 11:9 28:22 38:9 40:4 61:8 62:13 63:6
companies (4) 12:24 61:16,18,19
company (24) 1:5 4:5 13:23 14:16 20:4,5,5 21:21 22:9 23:15 24:13 24:19 27:6,12 29:4 30:14 32:10 35:19 42:15 51:10,25 63:18 65:19 67:12
company's (10) 4:13 16:9,13 24:3 35:18 54:7 64:5,9 66:15,20
compare (2) 46:20,23
compelled (1) 60:19
complaints (1) 17:5
complete (1) 9:8
completely (4) 18:8 19:5 25:19 26:5
compliance (1) 51:24
compounded (1) 66:5
comprised (1) 53:7
comprises (1) 12:22
con (9) 26:20 28:5 56:10,16,17,21 57:9,10,12
con't (1) 3:2
concern (2) 19:9 61:7
concerned (3) 26:23 35:16 63:15

concerning (2) 27:15 66:22
concerns (2) 16:17 27:4
conditioner (1) 56:13
conditions (2) 4:14 44:8
conducted (1) 45:12
confidential (1) 25:7
confirmed (1) 67:18
confront (1) 50:18
confused (1) 26:5
confusion (1) 26:11
Congress (3) 2:21 52:21 53:3
connect (1) 54:12
connections (3) 17:8 26:7 66:2
consequence (1) 37:8
consequences (1) 45:3
conservation (2) 33:12 53:24
consider (2) 62:6 65:10
consideration (3) 29:3 49:13 67:3
consistently (1) 34:18
constituent (2) 13:11 38:10
constituents (7) 10:3,14 16:10 17:11 19:22 63:13,24
constituents' (1) 66:4
construction (9) 9:7,8,14 43:25 45:2 47:14 50:20 51:2 53:5
consumer (1) 64:17
consumers (5) 24:5 26:2 34:9 65:15 66:25
consumers' (1) 63:16
contact (1) 27:8
contains (1) 50:22
contaminated (2) 61:23 62:10
contamination (1) 60:25
continue (6) 35:2 50:7,9 53:16 54:5,21
continued (1) 45:15
contractor (2) 38:15,25
contractors (1) 9:19
contrary (2) 43:10 44:8
control (1) 54:14
conversation (1) 7:15
conversations (2) 7:9 12:7
convert (1) 29:22
cooking (1) 55:22
cool (2) 34:17 51:17
cooling (1) 51:20
coordination (1) 54:8
copper (2) 39:23 45:5
corporate (1) 44:12
corporations (5) 61:3,9,11,12,15
correctly (1) 38:7
cost (5) 19:18 20:4 25:11 49:21 63:14
Costello (42) 1:13 4:2,7 5:8 15:6,8 15:11 18:17,19,22 21:16,18,20 28:10,12 30:19 33:18,20,21 36:13,15 38:4,6 39:12,14 47:3 52:18 55:3 57:19,21,24 58:4,7,9 60:9,14,17 62:19,22 63:5 67:5,9
costly (1) 26:15
costs (31) 16:18,25 17:15 18:8 19:11,16 24:11,14,20,20 25:18 27:21,25,25 29:19 35:22 49:2,19 49:25 51:20 54:14 60:24 63:16 64:8,15,17,20 65:4,8,10 66:21
Council (7) 2:4 3:4 9:22 15:12,18 19:7 62:25
Councilman (3) 6:18,19 10:9
counsel (1) 21:23
counting (1) 6:24
country (2) 42:9 62:11
County (3) 50:4 68:5,8
couple (2) 58:11 59:3
course (1) 20:15
court (2) 5:25 68:7
cozy (1) 48:23
crazy (2) 31:18 57:6
create (1) 47:13
creek (6) 16:22 24:22 25:12 28:2 62:9 64:18
crisis (6) 7:22 8:19 9:21 11:19 41:19 44:15
critical (1) 39:17
current (3) 17:17 44:8 66:19
currently (5) 17:3 18:6 23:20 37:11 64:6
customer (4) 29:24 39:18 49:25 53:18
customers (32) 21:6,21 22:4,7 23:8 24:4,8 25:18 26:4,12,16,25 27:19 30:15 34:3,9 35:5,17,20 36:7 40:7,11 44:11 46:19 47:21 53:16 54:13 63:6 64:5,15 65:16 66:8
customers' (2) 36:2 50:6
cut (1) 66:7
cutting (2) 34:11,12

D

d/b/a (1) 1:5
daily (1) 42:17
damage (1) 61:19
damaged (1) 19:23
dangerous (1) 47:10
daughter (1) 38:13
day (5) 22:6 24:13 53:14 67:17 68:19
days (3) 11:15 35:3 42:24
dead (1) 52:4
dealing (1) 58:18
debt (1) 59:19
DEC (2) 44:2 47:17
decades (3) 43:8 45:6 46:25
decide (1) 36:21
decided (4) 7:16 57:10 58:14 60:18
deciding (2) 4:13 22:20
decimating (1) 52:6
decision (3) 16:24 66:7,9
decision-making (2) 64:21,22
decisions (1) 65:5
decrease (1) 18:7
deeply (1) 27:15
definitely (1) 44:16
degree (1) 23:23
degrees (2) 56:11,12
Deirdre (2) 68:7,22
delivered (1) 53:13
delivering (1) 49:22
delivery (4) 15:25 23:7 35:8 53:21
demand (7) 41:7 44:7,9 48:10,13 48:19,21
demands (1) 45:21
denied (1) 46:8
deny (1) 43:11
Department (3) 4:8 6:5 14:8
design (1) 53:5
designated (1) 16:20
designed (2) 60:22,23
Despite (1) 39:25
destroy (1) 43:18
destroying (1) 41:3
destructions (1) 45:7
destructive (1) 50:16
Deutsch (8) 2:4 6:17,18,19 7:17,18 7:19 19:7
Deutsch's (1) 15:13
devastating (1) 37:8
developer (4) 2:22 9:16 55:5 60:5
developers (3) 8:12 9:13 26:2
development (1) 45:16
developments (2) 7:25 8:9
devices (1) 6:9
Diane (2) 4:10,17
die (2) 44:25 56:15
died (1) 52:4
different (1) 12:21
difficulty (1) 16:11
digit (1) 63:20
dinner (1) 14:21
dioxin (1) 50:24
direct (1) 41:21
direction (1) 45:23
director (3) 33:24 44:3 47:18
dirty (1) 45:16
disabled (2) 35:17 38:13
discovered (1) 24:21
discussing (1) 11:19
disposed (1) 61:6
disruption (1) 19:25
distinct (1) 66:3
distressed (2) 55:6,7

district (17) 2:4,6,7 7:7 12:22 13:20 14:11 15:2,22 17:4 19:3,4 20:11 63:2,8 64:3 65:3
dodge (1) 37:20
doing (7) 4:5 13:5 18:14 20:13 41:11 56:24 57:6
dollar (1) 49:19
dollars (17) 25:4,4,16 35:11,12,25 40:17 41:12 42:13 45:25 48:2,5 49:22 51:8,19 55:16 59:2
domain (1) 52:6
double (1) 63:19
Downtown (1) 63:9
drastic (1) 45:3
dryer (2) 55:22,22
dug (1) 50:22
DUMBO (1) 63:10
dying (1) 44:25

E

e-delivery (1) 27:8
earlier (1) 34:24
early (1) 22:21
ease (1) 54:16
eat (1) 14:21
echo (2) 15:12 27:17
economic (1) 54:2
economical (1) 53:12
economy (1) 53:10
ecosystem (2) 43:20 45:9
Ed (1) 56:10
Ed's (1) 56:17
EDC (1) 49:11
Edison (7) 26:21 28:6 56:16,21 57:10,10,12
educate (3) 7:21 10:22 11:13
educated (2) 12:4,6
effect (2) 9:16 21:5
effected (2) 7:12 19:10
effectively (1) 53:22
effectiveness (1) 51:16
effects (2) 11:9,9
efficiency (5) 41:7,25 45:21 48:11 48:19
efficient (2) 51:18 55:23
egregious (2) 44:20 52:3
Eidelman (3) 2:23 58:7,10
eight (1) 60:6
eighty-five (1) 14:10
Eileen (1) 13:25
either (4) 27:12 32:3,8 62:4
ELDELMAN (2) 58:8 60:11
elderly (2) 35:17 56:14
elected (11) 10:11,13,16 11:13 12:7 15:15 25:24 26:19 27:2 31:24 48:22
electric (5) 26:14 55:24 56:8 57:11 66:9
electrical (1) 17:17
electricity (4) 39:25 40:9 49:15 56:3
electrification (3) 41:8 45:22 48:11
electronic (1) 6:9
eligible (1) 36:7
Elizabeth (2) 3:4 62:20
email (3) 26:24 31:23 33:7
emails (5) 7:20 27:4,7 44:10 47:21
eminent (1) 52:6
emissions (2) 42:2 54:8
emotional (1) 52:10
employees (4) 6:24 9:18 59:6,7
encourage (2) 27:9 36:6
encouraged (1) 27:6
encouraging (3) 26:25 44:11 47:21
endorse (1) 19:5
ends (2) 34:20 39:7
energy (30) 2:18 28:17,20 34:11 34:15 37:17,24 40:9 41:7,10,13 41:24 42:3 43:6 44:9 45:15,21,23 46:17 48:7,11,19,19 54:6,14,21 54:25 56:23 63:14 66:4
enhancing (2) 64:11,11
enrolled (2) 36:7,10
ensure (2) 36:7 41:13
entire (1) 17:2
entrench (1) 37:4
envelope (1) 29:23
environment (6) 12:3 25:15 40:11 53:10 54:17 60:25
environmental (4) 25:2,10 64:23 65:18
equipment (7) 30:3,4,8 55:13,15 56:17,19
especially (5) 14:3 17:18 22:4 39:9 46:17
estate (4) 2:22 53:6 55:5 60:5
estimate (1) 51:4
estimated (2) 25:11 49:21
estimates (1) 25:6
evacuated (1) 52:5
evening (12) 15:9,10 17:13 18:16 18:25 21:19 58:8,9 62:21 63:4 67:18,22
everybody (2) 56:5 67:21
examine (2) 65:9,10
example (2) 9:3 44:20
examples (1) 37:6
excited (3) 30:25 31:12 59:4
exciting (1) 59:5
exists (1) 30:4
expansion (4) 36:23 45:14,19 48:8
expected (2) 48:14 64:24
expenses (1) 61:21
expensive (2) 49:24 66:12
experience (2) 56:23,24
experienced (1) 51:16
expires (1) 68:22
explosions (1) 52:6
extended (1) 36:2
extending (2) 42:14 51:9
extracting (1) 49:20
extremely (5) 7:8 12:25 26:15 63:15 66:21

F

face (1) 37:19
facing (2) 22:7 59:14
fact (6) 17:8 48:13 59:17,24 65:3 67:20
facts (2) 43:10 49:4
failing (3) 8:2,8 48:18
fair (4) 16:24 24:9 27:24 66:19
fall (4) 20:25 22:8 35:2 48:14
false (2) 44:15 47:13
family (3) 57:9 58:16 59:19
far (1) 24:19
fare (2) 12:14 23:15
fashion (1) 14:12
favor (2) 44:12 47:22
feel (6) 5:3 23:3,18 31:21 39:8 60:4
fees (1) 32:14
fell (1) 52:8
fellow (1) 4:24
felt (1) 60:20
fifty (2) 30:2 34:25
figure (2) 11:24 23:14
filaments (1) 56:8
filed (2) 38:15,25
fill (1) 5:21
filters (1) 51:13
final (1) 23:2
finally (3) 12:13 36:6 58:24
finance (1) 36:23
find (5) 36:3 37:2 59:11,12,20
finds (1) 25:19
fine (2) 41:16 42:23
firm (1) 45:12
first (10) 6:15 15:12 23:4 26:6 36:20 38:16,22 39:4 42:6 59:11
Firstly (1) 10:6
fishy (1) 31:14
five (3) 11:8 14:23 45:14
fixed (3) 12:23 34:10 63:24
flooded (1) 32:12
floor (5) 38:16,17,18,22 39:4
follow (1) 27:12
food (3) 34:12 45:6 58:12
forced (1) 66:11
forensics (1) 24:17
Forgive (1) 58:4
forgot (1) 59:11

form (2) 37:14 49:2
former (2) 44:2 47:17
forms (2) 46:2 48:4
forth (2) 29:4 68:11
fortunate (1) 15:4
forty (4) 6:25 21:25 40:25 41:2
forward (2) 5:7 41:20
fossil (12) 37:4,10,24 40:18 41:3 43:2 45:16 46:7,21,24 50:8,19
fought (1) 24:15
found (4) 42:10 44:5 45:13 51:6
Foundation (2) 2:12 30:21
four (3) 14:6 46:24 47:24
fourteen (1) 63:17
fracked (7) 42:4 43:21 45:17,19 47:15 48:9 50:2
Frankly (1) 65:6
free (1) 22:7
Fried (1) 60:13
friend (1) 58:14
friends (3) 10:22 58:16 59:19
frighteningly (1) 37:15
frustrating (1) 59:17
fuel (9) 37:10,24 40:18 41:3 43:2 46:7,21,24 49:5
fuels (4) 37:4 45:16 50:8,19
full (4) 21:11,14 38:12 39:6
functioning (1) 39:25
fund (1) 37:12
further (5) 35:22 37:3 66:5 67:7 68:14
Furthermore (4) 17:4 44:10 47:20 48:15
future (10) 20:20 42:24 43:6 44:7 50:6,8 51:12 54:7,11,25

G

Garneva (4) 2:17 39:14,15,17
gas (86) 1:5,6 4:5,6 7:12,24 8:3,10 8:14,15 9:2,7,8,11 13:10,16 14:4 14:5 15:25 17:8 18:5 20:12,14,18 20:20 21:6 26:22 28:4 29:22 32:16,16 33:3,5 35:8 36:24 37:12 38:20,21,21,22 40:14 41:7 42:2,4 42:6 43:3,21 44:3,7,18 45:17,19 45:20 47:15,19 48:9,10,13,20 49:4,6,12,15,23 50:2,5,12 52:14 53:13,25 54:8 55:8,12,14,21 56:21 57:5,12 59:5,9,10 64:9 66:2,7,16,21
gentleman (1) 26:8
George (1) 67:13
geothermal (3) 50:11 55:20 56:2
getting (3) 20:19 57:12 62:14
giant (1) 32:15
give (1) 30:13
given (7) 17:14,18 20:17,23 21:2,4 27:7
go (14) 11:8,10 14:7 19:16 32:2,3 33:9 41:20 42:13 51:3,9 52:12 57:11 67:19
goals (1) 54:10
goes (3) 7:20 46:14 52:8
going (40) 8:4,8 9:12 11:15,18 12:9 13:6,7 14:22 19:16 21:4,5 24:3 25:15,17 26:13,14,21 27:20 29:12,15,18 31:18 32:2,3,8,9,14 32:24,25 33:8,10 51:5,22,23 56:13 58:14 59:15 60:3 67:9
good (12) 13:18 15:9,10 21:19 31:10 36:17 56:7 58:8,9 62:21 63:4 67:21
gotten (1) 20:10
Goulet (4) 2:14 36:15,16,18
Gove (4) 2:11 30:19,20,20
government (3) 11:17 53:4 60:24
Gowanus (13) 16:22 19:4,11,15,21 19:24,24 20:2 24:22 25:12 28:2 62:9 64:18
grab (1) 59:23
grandchildren (2) 14:21,24
great (5) 37:5,13,19 56:2,3
greater (2) 16:11 34:8
greed (2) 29:14,14
greenhouse (4) 42:2,6 49:6 54:8
Greenpoint (1) 63:9
grew (1) 61:9
grid (64) 1:5 4:6 6:24 7:17 8:11 9:10,25 11:24 13:21 14:9 15:23 16:19 17:17 18:6 22:15 26:24 29:21 31:8 32:9,24 34:3,7,25 35:7 36:22 37:12 39:19 41:6,17 42:8,11 43:22,23 44:7,10,14 45:20 46:8,10 47:9,12,20,24 48:9 49:18 50:3,5 51:6 53:15,22 54:5 54:23 56:22,22 57:14,14 61:13 63:13 64:9,17,19 65:25 66:18,23
Grid's (12) 16:4,17 24:7 25:2,14 28:4,20 40:6,15 52:25 54:12 63:22
ground (2) 26:17 32:21
group (1) 43:15
groups (1) 22:22
grow (1) 60:7
growing (2) 41:4 61:17
growth (1) 54:2
Guarinello (5) 2:10 28:12,13,16 30:17
guy (2) 31:3 60:5
guys (1) 60:2

H

half (2) 31:4 64:5
Hall (1) 1:7
hand (2) 51:23 68:19
handful (1) 10:20
happen (3) 33:8,10 65:2
happened (2) 61:9 65:13
happening (4) 13:6 17:3,8 24:13
happens (2) 9:16 43:4
Harbor (1) 43:19
hard (6) 24:12,15 39:9 58:18,22 60:6
harder (1) 24:4
harm (1) 51:5
harmful (1) 45:10
health (3) 34:14 50:21 53:9
hear (1) 36:16
heard (17) 11:2 15:4 17:12 23:6,7 23:9 25:23,24,25 26:2,3,4 34:18 34:24 35:23 38:8 64:24
hearing (16) 1:7 5:7,14,14,20 6:12 11:11 13:9 18:25 26:7 36:20 39:16 47:6 67:4,11,15
hearings (3) 4:25 11:6 22:20
HeartShare (4) 2:10 28:17,19 30:17
heat (15) 34:17 41:8 45:22 48:4,12 49:16 51:13,16,18 55:20,25 56:2 56:6,6,8
heated (1) 29:20
heaters (1) 56:9
heating (2) 51:12,20
heatwaves (1) 42:25
heavily (1) 65:20
Heights (1) 63:10
hello (5) 4:16 30:20 36:16 55:4,4
help (9) 22:3,21 25:20 28:23 29:4 30:10 54:9,13 57:4
helped (1) 23:12
helping (2) 54:15,16
helps (1) 23:10
hereinbefore (1) 68:11
Hi (1) 62:21
high (2) 34:16 63:25
highest (4) 16:5 18:4 42:9 63:23
highly (2) 37:9 45:11
hike (7) 12:14,14 37:20 47:9 65:19 65:24 66:14
hikes (2) 49:3 65:11
Hill (1) 63:11
hire (1) 59:6
hired (2) 38:14 59:7
history (2) 40:21 53:15
hold (4) 10:16 11:20 12:23 22:20
holding (3) 31:21 39:16 67:4
home (7) 13:15 14:21,24 24:23 33:15 34:15 51:18
homeless (2) 8:21 13:15
homelessness (1) 8:20
homeowners (1) 57:2

homes (2) 34:17 52:6
homework (1) 14:22
honest (1) 13:19
Honor (2) 28:14 55:5
hooked (1) 20:12
hookup (1) 9:9
hookups (2) 8:15 44:18
hope (1) 33:14
hopefully (1) 8:5
horrifying (2) 50:15 52:3
hostage (1) 31:22
hotline (2) 22:6,11
hour (1) 31:4
hours (1) 22:6
house (4) 14:24 55:18 56:9 60:12
households (1) 23:19
houses (1) 57:9
housing (5) 8:13,18 9:13 13:8 26:3
huge (1) 49:13
human (4) 28:18 30:17 41:2 50:21
hundred (9) 19:13 29:25 35:10 42:11 56:12 61:21 62:2,7,15
hundreds (5) 40:16 47:25 51:19 58:25,25
Hurricane (1) 13:12
Hurricanes (1) 50:15

I

idea (1) 42:23
illustrates (1) 37:6
impact (3) 34:8 37:8 66:3
impacted (1) 65:17
impacts (2) 17:16 25:17
imperative (1) 53:11
implement (3) 48:18 53:17,23
implemented (1) 65:25
importance (1) 49:11
important (9) 4:24 7:8 11:12 13:2 23:3 62:12,14 64:13 65:23
improve (2) 53:18,18
inaudible (21) 11:22 22:17 23:4,18 24:17 29:17 32:20 38:9,21 39:20 41:24 42:4 45:5,13 46:5 47:18 52:13 54:16 58:19 64:12 66:17
incentive (1) 33:4
incentivize (1) 53:24
includes (2) 27:20 63:9
income (7) 22:5 34:9 36:8 38:17 63:24 65:7 66:11
incomes (2) 12:23 34:10
incorporate (1) 50:10
increase (41) 12:18 13:3,9 15:23 15:24 16:2,14,16 17:25 18:2,3,7 18:10 19:12,13,17 20:7,23 21:15 23:6 29:2,11 30:25 32:6,6 34:6 35:8,13 36:23 40:15,22 43:9,11 46:6 53:20 63:16,16,19,20,25 64:7
increased (1) 64:8
increases (4) 10:18 12:25 34:8,22
incredibly (2) 44:20 62:11
independent (1) 45:12
indicates (1) 58:3
individual (1) 25:6
individuals (1) 13:25
industrial (1) 45:4
industry (2) 53:6 58:12
inefficient (1) 30:4
inexcusable (1) 61:23
inflate (1) 48:25
inform (1) 22:23
information (5) 4:23 20:17 25:5,7 67:14
infrastructure (18) 29:16 33:11 36:24 37:12,25 40:14,18,24 43:2 45:19 46:7,16,21,24 48:9 53:17 53:25 64:10
inherited (1) 37:10
initiatives (1) 54:12
innovative (1) 53:23
insane (5) 46:3 57:17 59:12,25 60:8
inside (2) 29:23 55:13
installed (1) 55:13
installing (1) 55:20
instances (1) 22:13
interest (2) 40:4 49:25
interested (1) 68:16
interrogatories (1) 27:13
invest (1) 45:22
invested (4) 7:11 40:14 46:20 59:18
investigate (2) 18:10 66:15
investigated (1) 44:17
investigation (8) 17:23 20:9 21:12 21:14 26:20 28:4,6 31:15
investing (1) 41:9
investments (2) 53:16 64:13
investors (1) 46:13
involved (1) 7:11
Island (8) 4:20 11:7,11 22:16 34:5 48:16 50:3 67:12
Israel (3) 2:23 58:7,10
issue (5) 10:18 21:9 39:17 59:14 60:21
issued (2) 5:16,17
issues (6) 8:5 14:3 19:8 23:2 58:20 66:3
Issy's (2) 60:11,13

J

Jackie (3) 2:19 47:4,6
James (2) 1:13 4:7
Jo (4) 2:7 15:16 18:19 19:2
job (2) 4:22 42:18
jobs (1) 12:21
join (2) 26:18,18
Joralemon (1) 1:8
Joseph (4) 2:10 28:12,16 30:17
Judge (11) 1:14 4:8 15:11 18:22,23 21:20 33:21 58:8 60:17 62:22 63:5
July (3) 1:9 5:16 26:24
justification (1) 47:13
justify (1) 43:24
Justin (3) 2:20 52:18,20

K

keep (3) 12:19 29:19,19
keeping (1) 56:18
Keith (2) 2:22 55:3
kind (1) 42:19
know (29) 6:17 7:13,22 9:2 10:2,24 12:20 14:4,19 18:22,24 20:22 24:23 26:12 27:5 31:3,17,20 36:10 38:7 42:18 49:7 57:6 59:8 59:13,14,24 60:3 65:23
knows (2) 40:19 44:24

L

labor (1) 53:4
lack (2) 66:10,19
land (2) 43:19 61:3
lands (1) 61:22
large (1) 35:4
late (1) 9:3
Laurie (5) 2:8 15:18 21:18,22 28:7
law (15) 1:14 2:9 4:8 15:11,19 17:20 18:21,23 21:20,23 28:8 34:23 43:7 63:5 64:4
layoff (1) 9:14
lead (1) 54:24
Leadership (1) 41:22
leak (1) 14:5
leak-prone (2) 40:17 48:2
leakage (1) 42:9
Leaked (1) 49:5
leaks (4) 37:16 49:8,9,12
leaky (1) 48:3
learn (1) 60:18
leave (1) 21:13
left (1) 5:23
legislation (1) 41:20
let's (1) 9:5
letter (4) 17:7,22 52:22,24
level (4) 23:21,22,24 30:2
levels (1) 50:22
Levin (3) 3:4 10:10 62:25
Levin's (1) 15:18
liabilities (4) 25:3,10,15 61:18
liability (2) 24:21 64:23

Library (1) 67:13
lie (1) 52:14
lies (1) 51:12
life (7) 4:19 42:14,18 45:8 47:8 51:5,9
lifespan (1) 40:25
lift (1) 57:16
lifted (1) 57:2
likes (1) 39:21
lines (1) 55:14
link (1) 44:5
list (1) 51:23
listen (1) 60:18
listener (1) 4:22
listening (5) 5:2 30:22 33:15,17 46:4
literally (1) 8:17
litigation (1) 21:22
little (3) 31:2 42:19 49:9
live (5) 4:19 13:15 24:5 30:24 38:10
lived (1) 47:7
livelihood (1) 12:10
living (9) 8:22 19:24,25 23:20,22 23:24 29:25 38:18 63:24
lobby (3) 26:25 27:9 44:11
local (2) 43:7 62:25
logic (1) 46:3
long (9) 4:19,20 10:17 22:16 40:7 48:16 53:15,25 55:8
longer (1) 26:10
look (11) 5:7 6:23 23:18 24:22,24 26:22 27:17 29:23 30:3 32:23 52:11
looked (1) 24:18
looking (1) 67:19
lose (2) 22:10 56:10
losing (3) 12:9,10 56:10
lost (1) 24:16
lot (21) 21:8 22:12 23:2,11 24:18 25:5,6,23 26:7,15 27:11 29:18 31:12 32:22 33:11 35:23 41:15 55:7,10 56:20,24
loud (1) 11:2
loudly (1) 5:24
low (5) 22:4 34:10 36:8 65:6 66:11
lower (1) 34:9
lowered (1) 63:18
lucky (1) 32:12
ludicrous (1) 59:21

M

Macrorosi (1) 58:5
magically (1) 20:25
main (1) 27:16
maintain (1) 53:24
management (1) 48:20
manages (1) 40:2
mandate (1) 41:25
mandating (1) 43:7
Manhattan (1) 51:15
manipulation (1) 44:23
manufactured (1) 44:15
margin (3) 45:13 46:12,12
margins (1) 46:20
marine (3) 43:19 45:8 51:5
marriage (1) 68:16
Matt (3) 2:11 30:19,20
matter (2) 4:10 68:17
mean (2) 20:5 59:9
means (1) 40:25
meant (2) 44:19,21
mechanism (1) 60:23
medicine (1) 34:13
meet (2) 34:20 39:7
meeting (3) 7:16 27:13 38:9
member (14) 2:4,6,7 3:4 9:22 10:7 10:9 11:18 15:12,18,21 19:7,7 62:25
members (4) 11:20 34:4,19 63:6
mention (2) 14:22 59:12
mentioned (2) 13:4 64:16
mercury (2) 39:23 45:5
merged (1) 61:11
meter (2) 38:21 39:3
meters (1) 55:9
methane (7) 37:15 39:22 42:5,9 49:5,7,12
Metro (3) 53:2,14 54:18
Metropolitan (1) 48:14
Michael (1) 58:5
microphone (1) 5:25
middle (2) 12:8 32:21
midtown (1) 62:9
miles (3) 40:17 45:7 48:2
million (9) 6:21 10:21 15:24 23:8 25:3 35:11 47:25 48:5 53:8
millions (1) 40:16
mind (1) 12:19
mispronounce (2) 6:16 58:5
moderate (1) 22:5
modernize (1) 64:9
monetizing (1) 53:17
money (12) 12:10 33:4,13 40:13,13 41:5 45:18 48:8 54:15 58:16 59:18,23
monopoly (2) 42:19 44:21
month (5) 23:10,11 35:6,10 41:12
monthly (4) 35:3 53:20 63:17,21
months (3) 14:6 38:19 59:3
moratorium (27) 7:23 8:11 9:10 12:9 17:11,24 18:11 20:9,21 21:9 25:24 26:5,22 28:5 31:14,16 38:24 39:3 44:17 48:23 55:11 56:25 57:13,13,17 65:25 66:16
morning (1) 12:16
Motion (2) 1:3 4:3
move (4) 26:14 37:22 38:19 40:8
moved (1) 36:18
moves (1) 9:5
moving (1) 43:5
MTA (1) 23:15

N

name (17) 4:7,16 6:17 7:19 15:20 19:2 21:22 28:7,16 30:16,20 36:17 39:17 47:6 52:19 58:10 60:10
names (1) 6:16
naming (1) 40:20
Nance (4) 2:13 33:20,21,23
Nasau (1) 50:4
nation (3) 16:5 18:5 54:12
National (74) 1:5 4:6 6:24 7:17 8:11 9:9,24 11:24 13:21 14:9 15:23 16:4,17,19 18:6 22:15 24:7 25:2,14 26:24 28:4,20 29:21 31:8 32:9,24 34:3,7,25 35:7 36:22 37:11 39:19 40:6,15 41:6,17 42:8 42:10 43:22,23 44:7,10,14 45:20 46:8,10 47:9,12,20,24 48:9 49:18 50:2,5 51:6 52:25 53:15,22 54:5 54:23 56:21,22 57:14,14 61:13 63:13,22 64:8,16,19 65:25 66:18 66:23
natural (10) 15:25 18:5 32:16,16 36:24 48:13 49:4 53:25 55:21 56:21
near (1) 19:23
nearly (3) 51:3 53:7 64:5
necessary (3) 53:19,21 62:15
necessities (1) 34:12
need (28) 9:7 10:16,22,23,24 11:20 12:2,3,6,6,23 14:21 20:8 21:9 32:23 39:6,7 43:25 44:25 50:5,11 52:15 54:22 59:21 64:14 65:9 66:13,18
needed (1) 39:16
needs (3) 11:24 40:10 44:16
negative (3) 13:22 14:15 17:16
neglected (1) 37:15
neglects (1) 37:7
negotiate (1) 35:19
neighbors (1) 29:19
NESE (4) 27:2 43:17,25 47:14
never (1) 18:22
new (61) 1:8 2:13,21 4:6,19,20 6:21 8:6,7,9,18 9:4,10,20,22 11:8 11:14,21 12:20 15:22 16:5 17:6,8 17:21 26:6 28:18 32:15 33:24 34:18 36:11 38:22 40:13 43:4,15

43:18 44:17 45:11,12,14 46:11 46:11 47:15 48:14,16 50:7,13 52:20 53:2,9,14 54:11,18 55:13 57:3 58:13,20 63:23 66:2 67:2 68:3,9
Newtown (5) 16:22 24:22 25:12 28:2 64:18
night (1) 11:16
nine (1) 52:4
nineteen (1) 35:9
ninety (1) 14:10
noise (1) 51:4
non-utility (1) 36:9
nonpartisan (1) 53:3
nonprofit (2) 22:2 31:9
Notary (2) 68:8,23
note (2) 13:18 14:14
noted (1) 67:23
notice (5) 5:15 17:14 20:16 66:8 67:19
notices (1) 22:8
notwithstanding (1) 64:7
number (1) 34:2
numerous (2) 17:12 61:4
NYCHA (2) 7:25 8:6

O

o'clock (1) 11:16
object (1) 13:3
obviously (1) 33:2
occasion (1) 17:12
offer (1) 22:6
office (4) 15:18 17:4,5 20:11
offices (1) 35:18
official (1) 31:24
officially (1) 27:2
officials (9) 10:11,13,16 11:13 12:7 15:15 25:25 26:19 48:22
offline (1) 27:13
offshore (1) 48:15
oil (3) 8:3,10 29:22
Okay (1) 58:7
old (2) 21:25 56:17
older (4) 34:9,10,14,16
olds (1) 14:11
Once (1) 6:4
online (1) 44:5
open (4) 5:2 7:24 58:15 59:4
opened (1) 7:13
opening (1) 60:12
operate (3) 22:3,6 53:22
opportunities (1) 54:5
opportunity (4) 33:22 36:12 38:2 65:12
oppose (2) 34:6 36:25
opposed (1) 47:8
opposition (2) 40:6 41:21
option (1) 66:12
options (1) 66:5
order (4) 44:23 47:9 48:20 53:22
organization (2) 22:2 38:10
organizations (4) 28:22 43:16 53:5 53:7
originally (1) 4:20
outage (2) 56:5,16
outcome (1) 68:17
outright (1) 65:22
outside (1) 37:2
outweigh (1) 14:15
oven (1) 38:22
overall (1) 35:5
oversight (10) 8:7 9:23,24,25 10:2 11:21,22,23 42:19 49:13
owned (1) 61:12
owner (2) 2:24 9:17
owners (2) 7:24 51:19

P

p.m (4) 1:10 67:15,16,23
PAGE (2) 2:2 3:2
papers (1) 38:25
paperwork (1) 38:15
parlor (1) 9:6
part (3) 13:22 19:16 41:11
particular (1) 19:22
particularly (1) 19:9
parties (5) 16:20 22:12,22 60:25 68:15
partnership (1) 13:20
parts (2) 50:4 62:12
party (1) 22:14
Pascone (4) 2:20 52:18,19,20
pass (4) 42:17,21 49:2,19
passage (2) 41:22,23
passed (3) 54:9 64:15 65:4
Patrick's (1) 51:15
pay (11) 16:8 18:4 23:15 27:19 29:8,9 30:6 34:19 63:21 64:17 66:19
paying (10) 16:11 19:20 20:3 23:9 24:8 25:18 35:3,6 41:12 65:10
payment (1) 35:19
pays (1) 16:25
PCBs (1) 50:23
Pennsylvania (2) 43:21 47:16
people (47) 5:22 7:2,5,6,10,11,21 8:12,18,20 9:12 10:20,24 12:9 13:6 16:6 17:13 18:25 19:10,22 20:11,12 23:10,11 29:8,8,9 30:10 31:12 32:11 33:6,6 39:9 41:15 52:4,4,7 55:11 56:4,14,20 59:13 59:14,15,24 60:3 63:20
percent (13) 16:3 19:13 25:9 30:2 34:25 35:9 49:8,9 61:21 62:2,7 62:15 63:17
percentage (4) 24:14 35:4 46:15 46:18
perfectly (1) 41:16
permission (1) 21:2
perpetuates (1) 46:22
person (1) 39:21
personally (1) 37:2
phone (1) 35:21
physically (1) 35:18
pick (1) 41:17
pickle (1) 39:5
piece (1) 24:10
pipe (1) 66:21
pipeline (30) 7:10 12:5 20:23 21:3 21:10 27:2,3 32:16 33:3,9 39:20 40:18 42:12 43:14,18 44:2,13 45:17 47:10,14,22 48:3,5 49:14 49:17,20 50:13,20,22 59:22
pipelines (10) 33:13 40:23 42:14 43:3 45:3 48:24 51:8,10 52:7 64:10
pipes (2) 48:3 56:13
pit (3) 31:11,22 33:6
pizza (1) 9:6
place (7) 8:15 17:2 29:11 30:9 37:11 43:8 44:14
plan (1) 16:17
planet (2) 41:2 45:25
planning (2) 11:7,10
plans (2) 54:9 66:16
plants (1) 40:23
please (5) 5:21 6:9 21:13 37:22 57:16
plus (2) 49:25 59:7
podium (1) 5:23
point (2) 6:12 23:5
points (2) 27:16 40:12
policy (4) 18:6 21:23 22:13 54:10
politically (1) 7:11
poll (1) 45:12
pollute (1) 61:3
poor (1) 64:21
popular (1) 47:22
portion (1) 64:18
positive (1) 14:14
possible (1) 56:14
potency (1) 37:15
potent (1) 42:5
potential (1) 46:7
potentially (2) 17:16 44:18
poverty (4) 23:21,22,24 30:2
power (7) 40:23 41:10 44:22 56:5 56:10,10,16
powerful (1) 49:6
prefer (1) 21:3
present (1) 23:20

presentation (2) 31:3,5
presently (2) 38:12,18
presents (1) 54:4
president (2) 28:17 52:22
PRESIDING (1) 1:12
press (1) 5:17
presser (1) 11:15
pretty (1) 58:15
prevent (1) 24:12
previously (1) 19:6
prices (1) 34:16
primary (1) 16:20
prior (1) 59:25
prioritization (1) 42:3
prioritize (1) 40:10
private (2) 32:10 44:12
probable (1) 37:9
probably (3) 30:3,5 32:11
problem (1) 56:11
procedure (1) 6:11
procedures (1) 44:19
Proceeding (2) 1:3 4:3
proceedings (67) 4:1 5:1 6:1 7:1 8:1 9:1 10:1 11:1 12:1 13:1 14:1 15:1 16:1 17:1 18:1 19:1 20:1 21:1 22:1 23:1 24:1 25:1 26:1 27:1 28:1 29:1 30:1 31:1 32:1 33:1 34:1 35:1 36:1 37:1 38:1 39:1 40:1 41:1 42:1 43:1 44:1 45:1 46:1 47:1 48:1 49:1 50:1 51:1 52:1 53:1 54:1 55:1 56:1 57:1 58:1 59:1 60:1 61:1 62:1 63:1 64:1 65:1 66:1 67:1 68:1,10 68:12
process (3) 55:17 60:23 61:24
produced (1) 61:5
producing (1) 64:12
product (1) 31:6
professional (1) 53:4
professionals (1) 53:8
profit (3) 44:24 46:12,20
profitable (2) 61:6,10
profits (4) 46:14,15 48:25 49:21
program (3) 28:20 29:21,22
programs (6) 28:17 29:4 30:9 36:9 48:20 54:13
progress (1) 54:22
project (12) 2:9,18 15:19 17:20 21:24 25:9 28:8 34:24 45:10 58:25 59:2 64:4
projected (1) 44:6
projects (1) 26:3
prolonging (1) 37:16
proper (2) 14:7 38:15
properly (3) 6:3 19:19 20:4
properties (4) 55:6,8,19,25
property (2) 7:24 10:18
proposal (2) 52:25 54:4
proposed (9) 43:17 45:10 47:9 63:15,19 65:11,19,24 66:14
proposes (2) 29:2 64:9
proposing (1) 47:25
protect (2) 12:2 44:19
Protection (1) 41:23
proven (2) 42:15 51:10
proves (2) 44:3 47:19
provide (2) 54:23 63:14
providing (1) 66:2
proving (1) 52:13
PSC (3) 42:10 43:10 51:6
public (45) 1:2,7 2:9 4:9,12,25 5:13 5:14,18,19 6:6,11 9:23 11:6,11 11:22 13:5 15:19 16:8 17:20,22 21:23 22:12,20 24:2 27:22 28:8 34:23 35:14 36:3,20 39:16 40:2,3 42:20,20 44:15,22 52:15 54:10 64:4 67:11,15 68:8,23
publically (1) 46:10
publicized (1) 5:17
PULP (10) 21:25 22:14,22 23:4,10 24:12 25:14,18 26:23 27:4
pump (1) 51:17
pumps (9) 41:8 45:22 48:12 51:13 51:18 56:2,2,6,6
purpose (2) 40:15 61:14
purposes (3) 5:19 20:19 27:8
pursuant (1) 5:15
put (6) 5:4 19:12,17 28:4 44:4 65:13
puts (1) 29:4
putting (1) 57:8

Q

quarter (1) 53:8
Queens (5) 34:5 42:12 50:4 51:8 55:18
question (1) 64:14
questions (6) 6:10,14 21:8 27:11 46:10 66:6
quite (1) 61:10

R

radio (1) 11:16
raise (4) 10:25 22:25 40:6 49:18
raised (2) 58:16 64:17
raises (1) 66:5
rate (50) 12:18,25 13:3,9 16:2,13 16:16 17:25 18:2,3 19:12,13,17 20:7,23 21:15 22:13,21 27:18 28:25 29:2 30:25 32:5,6 34:6,8 34:22 35:8,13 36:8 37:20 40:22 43:9,11,23,24 46:6,13 47:8,13 49:2 52:25 54:4 63:15,19 64:6 65:11,19,24 66:14
ratepayer (3) 42:13 51:8 62:16
ratepayers (15) 16:18 17:2 19:14 19:18,20 27:24 35:2 36:5 44:19 46:15 49:20 61:22 65:7,16 66:25
rates (18) 1:4 4:4,13 15:25 16:4 18:5 23:7 24:7 27:18 32:2,3,7 36:23 40:7 42:9 49:15,18 63:22
rational (1) 45:24
ravaged (1) 50:14
read (3) 37:5 52:21 63:3
ready (2) 31:19 59:22
real (4) 2:22 53:6 55:5 60:5
realize (3) 29:14 53:20 56:4
really (8) 4:24 19:18 22:25 29:16 39:5 57:17 58:21 59:17
reason (1) 7:18
reasoning (1) 66:15
reasons (1) 36:25
rebuttal (1) 22:17
received (2) 17:5 46:23
reckless (1) 47:23
recommend (1) 52:11
record (2) 5:5 68:12
records (1) 51:24
recoup (1) 60:24
recover (1) 16:17
redlining (1) 58:19
redo (1) 38:16
reduce (5) 41:7 45:20 48:10,20 54:7
reduction (1) 41:25
regard (4) 19:8,10 20:11 66:11
regarding (2) 16:24 17:7
regards (2) 7:9 12:14
Reggie (3) 2:13 33:20,23
region (3) 48:15 54:3,11
regional (2) 44:2 47:18
Regulations (2) 1:4 4:4
regulators (1) 48:22
reimbursed (1) 49:24
reimbursement (3) 61:21 62:2,8
reinvested (1) 46:16
reject (3) 16:13 17:25 18:9
rejected (2) 20:8 65:22
rejecting (1) 37:20
related (2) 17:12 68:14
release (2) 5:17 45:4
reliable (4) 37:23 53:12 54:20,24
reliance (1) 50:19
rely (1) 63:13
remain (1) 54:19
remarks (2) 15:13 63:3
reminders (1) 50:16
removed (1) 55:9
renewable (9) 37:17 40:10 41:9 42:3 43:6 45:23 48:4,7,19
renewables (2) 41:14 45:15

renovate (1) 55:6
renovating (1) 55:18
renovation (3) 20:13,14,19
renovators (1) 51:13
rental (1) 38:17
repairs (1) 26:9
replacing (4) 40:17 48:2,3 64:10
report (8) 5:12 7:18,19 23:19 44:2 47:17 52:12,13
reported (1) 68:10
reporter (2) 5:25 68:7
reports (3) 24:19,24 25:8
represent (5) 6:19 10:13 16:6 19:2 63:8
representative (1) 15:17
representatives (1) 6:25
representing (2) 3:4 10:12
represents (1) 63:2
request (12) 16:10,13 24:3,7 28:3 34:6 35:15 40:6 41:20 43:9,12 46:6
requests (1) 40:16
requirement (2) 35:17 53:18
research (4) 24:18 25:8 45:13 64:4
resident (3) 2:15,16 39:18
residential (3) 26:4,16 35:2
residents (9) 10:4 11:13 15:3 23:23 53:10,13 54:20 65:16 66:11
resiliency (1) 64:11
resilient (1) 53:12
resources (2) 30:6,8
response (5) 6:13 33:19 57:23 58:6 67:8
responsibility (2) 64:20 66:24
responsible (7) 10:23 16:20,24 60:24 61:17 62:4 65:15
responsive (2) 13:21 54:22
rest (1) 18:15
restaurant (5) 2:24 9:6 58:15 59:4 60:10
result (1) 20:25
resulted (1) 64:22
return (1) 46:13
reviving (1) 48:23
rhino (4) 37:6,13,19,21
ridiculous (1) 57:3
right (11) 14:24 25:20 32:4 37:13 37:19 39:5 51:14,21 57:24 60:9 65:12
risking (1) 34:14
Robert (4) 2:5 10:7 15:8,20
roles (1) 31:10
rolled (1) 65:21
room (4) 6:23 10:19 33:25 37:13
Rules (2) 1:4 4:4
running (3) 22:11 52:7 55:14
runs (2) 8:6 43:9
Ruth (2) 2:16 38:6

S

safe (4) 29:19 37:22 53:11 54:23
safely (2) 42:16 51:11
safety (4) 51:24 53:18 61:7 64:11
Saint (2) 51:14 67:12
sake (1) 43:20
sand (1) 45:5
Sandy (5) 13:12 32:12,18,20 50:14
sane (2) 2:18 46:5
save (2) 51:19 54:15
saying (5) 6:20 31:17 32:19 38:7 59:21
says (2) 44:4 45:24
scare (2) 33:6 44:22
scheduled (1) 5:15
scheduling (1) 67:17
school (1) 14:23
science (1) 43:6
Scientists (1) 49:7
Scissura (1) 52:23
scrutinize (2) 24:6 35:15
scrutinized (1) 65:20
scrutinizes (1) 66:13
scrutinizing (1) 27:20
sea (1) 50:21
seawater (1) 51:2
second (4) 24:10 38:17,18 60:12
Secondly (1) 8:12
secure (1) 37:23
see (10) 7:5,6 8:23 12:16 13:5,6,7 16:15 24:25 52:12
seeking (1) 15:23
sell (2) 33:3,5
send (2) 7:17 47:20
senior (2) 7:6 12:21
seniors (1) 23:21
sense (3) 31:21 32:7 33:14
sensitive (1) 45:8
sent (4) 11:14 17:22 26:24 44:10
separate (1) 17:23
serious (4) 16:16 25:17 56:15 66:6
serve (1) 30:15
serves (1) 50:3
service (23) 1:2 4:6,9,12,14 5:13 5:18 9:11,23 11:23 16:9 17:22 18:7 22:10 24:2,20 26:9,10 27:22 35:14 36:3 53:2 54:24
Service's (1) 6:6
services (5) 1:6 28:18 30:17 53:19 54:13
serving (2) 53:5,16
Sessa (2) 33:18 57:22
session (2) 67:10,15
set (1) 68:11
seven (1) 13:13
severe (1) 66:10
shake (1) 66:24
shame (2) 7:2 10:15
share (2) 24:15 66:19
shared (1) 24:14
shareholders (5) 16:19 19:19 20:6 40:11 66:18
sharing (1) 5:3
shelters (1) 8:21
shores (1) 47:11
short (2) 40:5 49:6
shortage (6) 20:25 44:3 47:19 49:23 52:14 66:21
show (1) 11:16
shows (1) 66:10
shut (1) 31:18
shutoff (1) 20:18
side (1) 30:14
sidenote (1) 26:23
significantly (1) 65:21
silence (1) 6:9
similar (2) 26:8,20
Simon (5) 2:7 15:16 18:19,20 19:2
simple (2) 59:24 60:5
simply (3) 16:25 50:14 63:25
sincere (1) 13:19
site (3) 25:6 27:10 64:19
sites (3) 16:21 25:13 65:2
sits (1) 19:4
sitting (1) 14:2
situation (3) 27:5 32:19 55:10
sixteen (1) 42:11
sixty (1) 35:3
slowly (1) 5:24
small (3) 8:25,25 26:16
smells (1) 31:14
Smith (2) 68:7,22
Smoke (1) 60:11
soared (1) 25:3
social (1) 30:14
society (1) 37:7
soil (1) 61:4
solar (3) 37:18 41:10 50:9
sole (1) 49:25
Solotaire (4) 2:25 15:17 60:15,16
solution (2) 29:13 36:4
soon (2) 21:7 36:21
sorry (2) 9:10 57:4
sort (2) 27:23 31:15
sound (1) 52:10
sounded (1) 33:7
source (2) 40:9 50:16
sourced (1) 41:14
sources (4) 40:10 41:9 42:3 46:17
southern (2) 10:4,14
speak (7) 5:20,24 14:25 29:6 33:23

60:19 63:12
speaker (2) 6:15 57:25
speakers (3) 2:2 3:2 67:7
speaking (3) 7:25 8:24 34:4
specific (2) 27:7 42:20
spend (2) 40:16 47:25
spending (4) 30:5 45:18 48:5,8
spent (2) 41:6 55:16
squeeze (1) 44:23
ss (1) 68:4
staff (1) 10:8
standing (1) 10:19
start (3) 6:14 22:19 46:5
started (1) 58:17
starting (1) 59:5
state (18) 4:19 9:25 10:12,13 11:20 11:21 17:6,17,21 31:9 33:24 43:7 44:18 46:12 54:9 63:23 68:3,9
State's (1) 41:21
statement (7) 1:7 4:25 5:14,19 6:11 22:20 67:11
statements (3) 6:2,4,8
Staten (5) 11:7,11 34:5 50:3 67:12
statewide (1) 22:3
statistics (1) 23:16
stay (1) 30:11
stayed (1) 24:16
Stephanie (3) 2:14 36:15,18
Steve (4) 3:4 10:9 15:18 62:25
stop (7) 9:14,15 18:6,15 39:20 43:14 46:4
stopping (1) 43:17
storage (1) 50:10
store (1) 9:4
storefront (1) 9:4
storefronts (1) 8:25
storm (2) 50:14 64:11
storms (1) 50:16
stove (1) 55:22
stranded (2) 48:6,6
strange (1) 31:16
street (2) 1:8 12:11
streets (1) 8:22
strive (1) 58:21
strong (2) 48:17 54:20
strongly (1) 20:21
struggle (2) 23:14 34:19
struggling (6) 16:7 23:11,17,25 34:21 63:21
subject (1) 56:9
submit (3) 22:23 44:5 47:22
submitted (1) 52:22
submitting (1) 22:16
subsidies (1) 46:23
substances (1) 50:23
substantial (1) 17:15
subway (1) 8:23
suddenly (1) 59:8
suffered (1) 13:11
suggest (1) 65:6
summarize (1) 5:11
summer (2) 17:18 51:17
super (2) 30:24 50:14
superfund (13) 16:18,21 24:11 25:13 27:21 35:23 60:21,22 61:14,24 64:19 65:2 66:20
supermarket (1) 9:5
supplier (1) 56:22
suppliers (1) 9:20
supplies (2) 9:15 24:19
supply (2) 50:6 53:12
support (5) 38:13 45:14 48:15 52:25 53:25
supposed (2) 10:12 51:3
sure (11) 8:5 14:10,25 15:3 16:23 22:9 24:7,15 27:18,23 61:15
Surfrider (2) 2:12 30:21
survive (1) 30:11
suspect (1) 20:21
sustainable (3) 43:5 54:21,24
Suzanne (1) 52:13
swim (1) 39:22
switch (3) 8:3 51:21 66:9
switched (1) 8:10
system (8) 37:4,10 40:2 44:24 45:24 46:22 51:17 54:16
systems (4) 40:9 45:7 50:10 54:21

T

tactics (1) 44:23
take (7) 4:23 5:4 29:3,15 49:12 54:14 65:8
taken (1) 62:4
takeover (1) 31:9
takes (2) 6:7 43:8
talked (3) 14:16 44:16 47:19
talking (5) 7:23 27:3 32:5,13,15
tax (1) 10:18
technologies (2) 50:11 53:23
tell (4) 31:24 52:2 55:15 59:8
temperature (1) 56:7
temperatures (1) 50:17
ten (6) 11:16 16:3 24:25 29:16 41:12 56:11
tens (1) 8:21
term (4) 40:5,8 49:6 54:2
termination (1) 22:8
testify (2) 28:9,21
testifying (2) 10:19 11:3
testimony (6) 22:17,18,23 28:15 30:13 35:24
thank (55) 5:6,8 6:18 13:18 14:13 14:17 15:5,6,13 18:12,13,15,17 18:20,24 21:15,16 22:24 28:8,10 28:13,14 30:18,21 33:15,16,17 33:18,21 36:12,13,17 38:2,4 39:11,12,15 47:2,3,5 52:16,18,19 55:2 57:18,19 60:9,14,16 62:17 62:19,21 67:3,5,21
thanking (2) 13:24 22:19
therefor (2) 24:6 41:16
thing (5) 31:2,13,25 51:22 56:15
things (9) 13:4 14:20 31:10,17 32:22,25 40:19,21 61:5
think (14) 21:10 29:2 31:8,9 32:11 32:21,23 33:5,10 40:13 53:21 56:15,25 58:21
third (1) 25:22
third-party (1) 27:9
thirty (2) 6:25 62:13
thought (1) 26:6
thoughts (1) 5:3
thousand (1) 55:16
thousands (3) 7:20 8:21 59:2
threat (2) 37:14 50:18
threaten (1) 50:21
threats (1) 37:7
three (6) 12:21 14:6 18:2 23:2 34:22 43:13
thriving (3) 43:18 46:6 54:19
throughly (1) 66:15
throwing (1) 33:13
Thursday (1) 11:16
time (19) 10:7,10 13:14 14:19 18:12 20:18 21:7 29:18 30:16 36:2 38:12 39:6 46:4 49:8 55:2,8 59:18 65:24 67:23
timely (1) 14:12
times (2) 42:5 49:5
timing (2) 31:16,20
today (21) 4:10 5:6 10:3,8,10 13:9 13:13,14,25 15:4 22:25 23:3 26:9 29:15 32:6 34:5 36:20 38:3 45:25 47:6 65:9
told (2) 38:23 39:2
tomorrow (1) 46:2
ton (1) 59:14
tonight (16) 5:10 14:19 15:15 18:13 25:23 27:14,17 28:9 30:22 31:2 33:16 35:24 59:13 60:17 62:23 63:7
tonight's (2) 67:4,10
tons (1) 60:3
top (4) 15:25 29:11 35:7 45:2
topics (1) 60:20
total (1) 35:11
totally (2) 12:11 57:11
touch (2) 24:10 25:22
Towns (1) 52:5
toxic (1) 50:23
toxins (4) 45:4 50:25 61:4 62:3

tramples (1) 37:21
transcribed (1) 6:4
transcribing (1) 6:2
transcript (1) 68:11
transcripts (1) 6:5
transition (3) 37:16 43:8 48:7
transitioning (1) 54:6
Translating (1) 35:9
transparency (1) 66:20
transparent (2) 21:11 37:23
trees (1) 52:8
trends (1) 44:8
trickle (1) 9:15
triggering (1) 17:15
true (1) 68:12
truly (3) 19:18 48:4 65:14
trust (1) 46:2
try (2) 30:10 57:21
trying (5) 26:17 31:22 33:5 43:23 60:7
turbidity (1) 51:5
turn (3) 20:13 55:12 57:4
turned (5) 8:16 13:16 14:5,12 20:15
turning (1) 50:25
turnons (1) 8:14
twenty (1) 42:6
twice (1) 30:5
twisting (1) 44:22
two (15) 6:7 12:21 13:24 14:23 25:16 35:10,25 36:19 41:19 56:4 56:20 57:8 58:17,24 62:10

U

ultimately (1) 4:13
unable (2) 34:16 38:19
unacceptable (7) 12:12 13:17 25:19 35:13 43:3 62:5 65:6
unconscionable (1) 50:15
understand (3) 12:3 28:25 29:10
unethical (1) 47:23
unfair (3) 18:8 39:8 57:2
unfairly (2) 36:4 66:24
unfortunately (1) 24:16
Union (2) 1:5 4:5
units (1) 50:2
unnecessarily (1) 36:22
unnecessary (5) 16:16 18:9 43:20 47:10 49:23
unpopular (1) 45:11
unrelenting (1) 51:2
unsafe (1) 50:22
unwarranted (1) 17:15
upgrade (1) 30:8
urban (1) 41:4
urge (5) 16:12 18:9,10 35:14 60:2
urged (1) 17:24
use (11) 5:22 23:14 27:4,7 38:22 41:3 43:21,23 47:12 55:15 56:21
usually (1) 6:6
utilities (4) 12:15 38:23 40:8 48:21
utility (21) 2:9 12:24 13:23 14:16 15:19 16:8 17:20 21:23 22:3,7 27:6 28:8 34:20,23 36:6,8 40:2 52:16 54:22 64:4,6
utility's (1) 35:16
utilize (1) 29:17

V

vacant (2) 8:24 9:4
variety (2) 41:19 43:16
various (1) 27:25
vehemently (1) 47:8
venture (1) 58:17
ventured (1) 58:11
verses (1) 46:14
viability (1) 54:2
vice (1) 28:16
violates (1) 44:18
violations (2) 42:11 51:7
visited (1) 51:14
vital (2) 45:9 62:12
voice (4) 7:4 11:2 29:7 40:5
voices (2) 10:25 15:4
volunteer (1) 39:19
volunteers (1) 34:2
vulnerable (5) 28:24 29:5,25 65:7 66:25

W

Wachtel (3) 2:22 55:3,4
walk (1) 33:15
want (21) 6:20 11:12 12:13 13:3,18 13:24 14:12,17 15:13 19:9 22:19 24:10 25:22 31:15,25 32:19 41:5 48:24 50:18 58:21 60:19
wanted (5) 23:16 27:14,17 60:20 63:3
wantonly (1) 61:7
wants (2) 35:8 58:2
warm (2) 30:12 51:17
warming (1) 50:17
warning (2) 57:7 59:25
water (6) 39:23 45:6 51:5 61:4,22 62:10
way (9) 8:6 9:17,18,19 32:4,8 43:4 61:5 68:16
we'll (2) 5:22 57:21
we're (13) 5:10 8:4,8 32:5,13,15,19 33:12 42:23 58:24,25 59:3,4
we've (9) 23:9 25:23,25 26:2,3,4 57:10,24 64:24
website (1) 6:6
week (4) 6:7 7:16 17:23 23:13
weekends (1) 42:25
weeks (2) 6:7 56:4
weird (8) 31:2,4,7,23 32:9,13,19,25
Weisberg (4) 2:19 47:4,5,7
went (2) 12:15,15
Westchester (4) 26:21 28:6 68:5,9
Wheelock (6) 2:8 15:19 21:18,19 21:22 28:7
Whichever (1) 43:4
wide (1) 43:15
widow (1) 38:12
Williams (6) 7:10 43:25 45:3 47:14 49:24 51:24
Williams' (1) 12:5
Williamsburg (1) 63:9
wind (4) 37:17 41:10 48:15 50:9
winter (4) 8:2,4 14:4 51:17
wish (2) 5:20 62:6
WITNESS (1) 68:19
woman (3) 15:16 18:20 23:12
woman-led (1) 23:19
wonderful (1) 18:15
work (11) 12:20 17:19 18:14 22:9 27:23 28:7 30:21 31:17 38:12 44:21 56:13
worked (1) 24:12
workers (1) 9:14
working (13) 14:8,9 39:6,9 40:3 41:6 42:12 43:14 45:20 48:10 51:7 54:23 60:6
world (2) 43:5 46:6
world's (1) 41:4
worse (2) 32:20 57:13
wouldn't (1) 42:17
writing (1) 52:24
written (1) 17:7
wrong (3) 25:21 49:11 57:5
wrongs (1) 65:12

X

X (2) 1:2,6

Y

year (9) 14:11 21:25 28:23 29:7 35:11 38:14 40:25 51:3,20
years (18) 13:13 18:2 24:25 28:19 29:16 31:19 34:22 36:19 41:2 43:14 47:24 58:11,17,24 59:23 60:6 62:14 64:25
York (40) 1:8 2:13,21 4:6,21 8:6,7 8:19 9:20,22 11:8,14,21 15:22 16:5 17:6,21 28:18 33:24 34:18 36:11 43:4,19 46:11,11 47:15 48:14,16 52:21 53:2,9,14 54:11 54:18 58:13,20 63:23 67:2 68:3,9
Yorker (1) 4:19
Yorkers (7) 6:21 8:9 12:20 43:15

45:11,14 50:7

Z

0

1

1,616 (1) 51:7
1.2 (2) 25:4 64:23
1:00 (1) 67:15
10 (1) 5:16
11 (1) 49:8
1253 (1) 41:24
13.33 (2) 23:9,11
13.9 (1) 15:24
13.93 (1) 23:6
14 (1) 2:5
15 (1) 59:7
16.60 (1) 35:9
170,000 (1) 10:4
18 (1) 2:7
19-G-0309 (2) 1:3 4:2
196 (2) 15:24 23:8

2

2 (1) 64:25
2.6 (2) 6:21 10:21
2:00 (1) 67:16
2009 (1) 25:2
2013 (1) 4:18
2016 (5) 16:2 24:12,16 64:16 65:13
2018 (3) 25:2,10 39:2
2019 (5) 1:9 5:16 39:2 67:14 68:19
2020 (1) 68:23
2022 (1) 25:16
209 (1) 1:8
21 (2) 2:8 67:14
22% (1) 23:21
236 (1) 35:11
24 (2) 22:6 45:7
24/7 (1) 51:3
27 (1) 2:10
29 (1) 2:11

3

3.2 (1) 49:9
31 (1) 1:9
310 (2) 40:17 48:2
32 (1) 2:13
33rd (3) 63:2,8 65:3
35 (2) 2:14 28:19
350Brooklyn (1) 52:12
350Brooklyn.com (1) 2:19
350Brooklyn.org (1) 44:6
36 (1) 2:16
36% (1) 23:19
371 (1) 25:3
38 (1) 2:17

4

44th (2) 2:6 15:21
45 (1) 2:19
48 (1) 2:4

5

50 (2) 2:20 28:22
52nd (2) 2:7 19:3
53 (1) 2:22
550 (1) 53:7
56 (1) 2:23
58 (1) 2:25

6

6 (1) 2:4
6.50 (1) 23:13
60 (1) 3:4
620 (1) 11:17
63,000 (1) 8:20

7

7:00 (1) 1:10
72% (1) 23:23
7th (1) 68:19

8

8:18 (1) 67:23
80 (1) 25:9
84 (1) 42:5
86 (1) 49:5
8th (1) 26:24